

Residential Rental Agreement ("Agreement")

Owner/Agent rents to Resident(s) and Resident(s) rent from Owner/Agent the Premises subject to the following terms and conditions.

Terms of Tenancy

Owner/Agent: **184 13th Street Associates LLC**

Date: **June 30, 2022**

Original Resident(s) (All persons aged 18 or older and emancipated minors):
Luis Soberanis Pacheco May 14, 2001

(Name/DOB)

(Name/DOB)

(Name/DOB)

(Name/DOB)

(Name/DOB)

Property:

The Property is located at: **184 13th St, Oakland, CA 94612** [Street Address].

Owner/Agent rents to Original Resident(s) [hereafter "Residents"] and Resident(s) rents from Owner/Agent the real property and improvements described as: **184 13 St. APT 114, Oakland, CA 94612** [hereafter "Premises"].

No other person may occupy the Premises or any part thereof without Owner/Agents prior written consent.

The Property and Premises are owned by: **184 13th Street Associates LLC**

Owner's authorized Agent as of the date of this Agreement: **Mosser Companies, Inc.**

The Premises ☒ is ☐ is not controlled by a local government rent adjustment or just cause for eviction ordinance or law.

The Property also includes appliances, key(s), gate or garage transmitters or other personal property.

Other Authorized Occupants(s):

N/A N/A

(Name/DOB)

N/A N/A

(Name/DOB)

Any persons identified as an Other Authorized Occupant(s), including minor children of a Resident(s), has/have no independent right(s) of tenancy separate from the rights of a Resident(s). Upon the last Resident vacating the Premises, all Other Authorized Occupant(s) and guest(s) must contemporaneously vacate the Premises even if a Resident's minor child has reached the age of maturity. Upon the vacating of the Premises by the last Resident in possession, Owner/Agent may adjust the rent pursuant to law.

Initial Payments By Residents: Resident(s) have made the following payments:

- Rent: **\$945.00** for Rent from **July 01, 2022** to **July 30, 2022** (Dates) received by Owner/Agent on **July 01, 2022** (Date). A balance of Rent in the amount of **\$945.00** is due on or before **June 30, 2022** (Date).
- Security Deposit: **\$0.00** is due on or before **June 13, 2022** (Dates) received by Owner/Agent on **June 13, 2022** (Date). A balance of Security Deposit in the amount of **(\$300.00)** is due on or before **June 30, 2022** (Date).
- Credit Check(s): **\$42.00** received by Owner/Agent on **June 13, 2022** (Date). A balance in the amount of **\$0.00** is due on or before **June 30, 2022** (Date).
- Prorated Rent amount is **\$31.50** is for the period of **June 30, 2022** (Date) to **June 30, 2022** (Date).

Rent:

Rent shall be the obligation of the Resident(s) to pay Owner/Agent pursuant to the terms of this Agreement, excluding the Security Deposit and the payment of damages.

- A. Resident(s) agree to pay **\$945.00** per month, in advance for the Term.
- B. Rent is due in advance on the **1st** day of each month and is delinquent the following day.
- C. Rent shall be paid by Resident(s) to:
 1. **Mosser Companies, Inc.** (Name of Owner/Agent)
 2. **184 13th Street Associates LLC** (Address or other location specified by Owner/Agent)
 3. **308 Jessie Street San Francisco, CA 94109** (Alternate location as specified by Owner/Agent)
 4. **(415) 284-9000** Phone number of Owner/Agent
 5. Owner/Agent may elect to require Rent to be paid in cash for three months and all future Rent to be paid by **[X]** Money Order or **[X]** Certified Cashier's check if any check is returned for non-sufficient funds ("NSF") or because Resident(s) stops payment.

Security Deposit:

Resident(s) agree to pay **\$0.00** as a security deposit which shall be held by **[X]** owner **[]** Agent.

- A. Use, disposition and accounting of the Security Deposit is governed by law, which among other things, may be used by Owner/Agent at any time to cure Resident(s) default in the payment of rent, costs of repairs, or damages (excluding normal wear and tear) caused by Resident(s), guest(s) or invitee(s), cleaning of the Premises following the termination of tenancy, NSF fees, stop payment fees or other monies owned by Resident(s).
- B. Resident(s) shall not use the Security Deposit for the payment of Rent, including the last month's Rent.
- C. If any portion of the Security Deposit is used during the tenancy, Resident(s) shall replenish the total Security Deposit within three (3) business days following written notice by Owner/Agent to Resident(s), which shall be made, at the election of Owner/Agent, by personal delivery or U.S. mail. Delivery by U.S. mail shall not extend the Residents time to perform.
- D. Within 21 days of all Residents vacating the Premises, the lawful remaining Security Deposit shall be returned subject to the Owner/Agent providing Resident(s) an accounting of the lawful deduction the security deposit. , Resident(s), guest(s) and invitee(s) caused damages cleaning, and all Owner/Agent's personal property that the Resident(s), guest(s) and invitee(s) had possession which include Owner/Agent(s) keys and/or transmitters shall be returned in the same condition when Resident(s) obtained possession of the Owner/Agent(s) personal property.
- E. Interest on any lawful security deposit held by Owner/Agent(s) shall not be paid to Resident(s) unless required by law.
- F. Resident(s) agree not to hold Agent responsible for the return of the lawfully remaining security deposit if Owner holds the security deposit.

Use Of Premises:

The Premises shall only be used as the principal residence of the Resident(s) and for no other purpose.

Term:

The term begins **June 30, 2022** ("Commencement Date") and shall be either:

- a) **[]** Month To Month and shall continue as a month to month tenancy. Notice to terminate by either party is governed by law and may be given at any time.
- b) **[X]** Lease and shall terminate on **July 29, 2023** (Date) at 12:00 A.M. All Resident(s) are to vacate the Premises upon termination of this Agreement unless a written agreement, signed by Owner/Agent and Resident(s) extends this Agreement, Owner/Agent and Resident(s) sign a new written agreement, termination is otherwise controlled by state or local law. Either party may terminate the month to month tenancy pursuant to applicable law.

If Owner/Agent is not able to deliver possession of the Premises on the Commencement Date, the Commencement Date may be extended to: **July 03, 2022** ("Extended Commencement Date"). If Owner/Agent is unable to deliver possession of the Premises on the Extended Commencement Date, Resident(s) may terminate this Agreement by giving written notice to Owner/Agent and all pre-paid Rent and Security Deposit shall be refunded to Resident(s).

Utilities:

- A. Resident(s) ☒ shall ☐ shall not separately pay for the following services: **Cable, Electricity, Electricity for Hot Water, Gas, Internet, Recycling, Phone, Trash**
- B. Resident(s) agree that any utilities that are the responsibility of Resident(s) shall be placed and maintained in his or her own name(s) with the applicable utility provider(s) within three (3) days of taking possession of the Premises. Resident(s) is/are responsible for timely paying Resident(s)' utility charges and any fees, fines or other charges by the utility provider(s).
- C. Resident(s) shall pay any increase in utility rates, fees, charges and fees/charges/fines/assessments imposed for the use, excessive or misuse of the utility by Resident(s) as required by government or utility company action(s).

Parking:

Any parking on the real property to which the Premises are a part is subject to the parties signing a separate written Parking Agreement. Any vehicles that are parked on the real property to which the Premises are a part may be towed away at Resident(s) expense if they are (1) illegally parked; (2) not currently registered or capable of being driven legally on streets; (3) parked in a manner that causes an unsafe or hazardous condition; or (4) parked in any unauthorized area.

Condition Of Premises As Of Commencement Date:

Resident(s) have inspected the Premises (☒ with Owner/Agent) and agrees that the condition of the Premises, including appearance, cleanliness, operability of the real and personal property are as described in the Move In / Move Out Form attached to this Agreement as Addendum "A".

Maintenance:

- A. Resident(s) shall maintain, correctly use and safeguard the Premises including all personal property, landscaping, appliances, plumbing fixtures, electrical, mechanical, gas/smoke/carbon monoxide detectors and devices, heating and air conditioning equipment. It is the Resident(s) responsibility to keep the Premises sanitary and clean.
- B. Resident(s) shall within 3 business days of written notice by Owner/Agent pay to Owner/Agent the cost of all repairs, replacements or cleaning that Owner/Agent determines were caused by Resident(s), guests or invitees, and animals of the Resident(s), guests or invitees, excluding normal wear and tear.
- C. **RESIDENTS ARE RESPONSIBLE FOR IMMEDIATELY NOTIFYING OWNER/AGENT, IN WRITING, OF ANY CONDITIONS THAT MAY REQUIRE REPAIR, REPLACEMENT, OR SERVICE OR WHICH COULD BE A THREAT TO RESIDENT(S) HEALTH OR WHICH COULD LEAD TO A SUBSTANDARD OR UNINHABITABLE CONDITION OF THE PREMISES. RESIDENTS SHALL IMMEDIATELY PAY OWNER/AGENT FOR ALL DAMAGE THAT IS A RESULT OF NOT REPORTING SUCH CONDITIONS TO OWNER/AGENT IN A TIMELY MANNER. FAILURE TO TIMELY NOTIFY OWNER/AGENT IS A MATERIAL BREACH OF THIS AGREEMENT.**

☒ Owner/Agent ☐ Resident(s) shall maintain the exterior landscaping described as follows:

yes

Storage of Personal Property:

- A. A. Separate storage space ☐ is or ☒ is not provided in the Rent charged. The storage fee is **\$0.00** per month. The storage space is designated as: **N/A** ["Storage Space"].
- B. No dangerous material, illegal substances or materials, hazardous materials, explosive, flammable or perishable materials may be stored in Storage Space or in or on the Premises.

Animals:

☒ No animal is permitted on the Premises or the real property to which the Premises are a part unless agreed to by Owner/Agent pursuant to a separate prior written agreement or unless permitted by law.

☐ Permitted animals are identified in Addendum (Addendum "B").

All animals at the Property shall comply with the Pet Addendum (Addendum "B".)

Resident(s) shall not feed or house any stray animals.

Smoking:

- A. ☒ (If checked) Smoking of any substance by Resident(s), guests or invitees is not permitted in or outside the Premises or the real property to which the Premises is a part.
- B. ☐ (If checked) Smoking of any substance is only permitted in the following designated areas: N/A.
- C. No smoking or restricted area smoking requirements may be different with Resident(s), guests or invitees based on state or local law and by existing agreements with the Owner/Agent.

Resident(s) are responsible for all damage caused by smoking, including the cost of cleaning the Premises, repainting and replacement of floor coverings or other real or personal property regardless of when last cleaned or replaced.

No smoking or restricted area smoking restrictions are not a guarantee of air quality, reduced health risks or any impact on a person's health. Enforcement of any smoking restriction does not constitute a change in the duties Owner/Agent has under the law, including the warranty of habitability, the laws on nuisance, quiet enjoyment or any other standard of care that may or may not be owed to Resident(s), guests or invitees. Violations of law under this paragraph shall be enforced by the local government.

Rules and Regulations:

- A. **[X]** Resident(s) shall comply with all Rules and Regulations that are posted on the Premises and/or **[X]** a copy of the Rules and Regulations are delivered to the Resident(s) or the real property of which the Premises are a part.
- B. **[X]** Resident(s) shall comply with the Rules and Regulations that are attached to this Agreement as Addendum "C".
- C. Resident(s) are responsible for ensuring that occupant(s), guest(s) and invitees comply with the Rules and Regulations.
- D. Owner/Agent may impose, change or modify any Rule and Regulation at any time. Any imposition, change or modification to any Rule and Regulation is not and shall not constitute or be construed to be a diminution of value or decrease in housing services.
- E. Residents, their guests and invitees shall not interfere, endanger, disturb or annoy other Resident(s) or occupant(s), guest(s) or invitee(s) of neighboring properties or use the Premises for any unlawful purpose. Residents, their guests and invitees shall not commit waste, keep and maintain the cleanliness of the Premises, including window coverings and flooring, keep the Premises in good repair and free of unsightly appearance or create a nuisance at the Premises or in general.

Pool/Spa/Hot Tub Rules:

The Premises **[]** does **[X]** does not include a swimming pool, spa and/or hot tub ["Pool"]. Use of the Pool and Pool area is a privilege and not a right. Use of Pool by Resident(s) may be restricted or revoked by Owner/Agent if Pool rules are not followed, sanitary conditions prohibit use or maintenance is required or being performed. Owner/Agent may deny or limit access and use of the Pool and Pool Area to Resident(s), Other Authorized Occupants, guests or invitees at Owner/Agent's discretion. Pool rules may be modified at Owner/Agent's discretion. If applicable, Pool and Pool Area Rules are attached hereto and incorporated herein as Addendum "D".

Late Charges, NSF Fees:

- A. If Owner/Agent incurs costs and expenses associated with Resident(s) payment of Rent, Security Deposit or any other late fee or charge, Resident(s) agree to immediately pay Owner/Agent for those costs and expenses. These costs, which shall be presumed reasonable include but are not limited to accounting, enforcement, late charges and processing fees and costs. Any such costs, expenses and charges shall be in addition to rent owed.
- B. Rent is late if not timely paid in full or, if permitted by Owner/Agent by a prior written agreement signed by Owner/Agent, pursuant to agreed to installment payments.

If Resident(s) fails to timely pay Rent when due, or if Resident(s) check is returned for any reason,

Resident(s) shall immediately pay an additional **\$50** as a late fee and **\$35** as a NSF fee for the first returned check and \$35.00 for each subsequent returned check. Resident(s) agree that these charges and fees are a fair and reasonable administrative costs of the Owner/Agent. In no case shall acceptance of any Late Charge or NSF fee constitute a waiver as to any default in Rent. Late fees or charges shall not be considered Rent. An Owner/Agent may exercise all other legal remedies due to the failure to pay Rent when due and the total amount of Rent to be paid when due.

Accounting:

Monies accepted and received by Owner/Agent(s) from Resident(s) shall be applied first to late fees, NSF fees, other charges due and owing, replenishment of Security Deposit, past due Rent and last, to current Rent due and owing.

Neighborhood and Security:

Resident(s) are solely responsible for determining if the neighborhood and area are satisfactory. This includes proximity to schools, public transportation, parks, law enforcement, crime, felons, registered sex offenders, fire protection, public safety, noise, traffic, commercial or industrial properties, construction, electromagnetic fields ("EMF"), animals, common area facilities, personal needs facilities, personal preferences or requirements, technology, hazards, location and impact of culture, religious or other needs of Resident(s).

Owner/Agent makes no representation that the property or Premises is "secure" or that the property is safe from theft, injury or damage. Gates, fences and locks are not a warranty of protection nor are they provided for the protection of the Resident(s), guests or invitees. Resident(s) shall protect their own property and contact police of suspicious activities, persons or events on or about the property or Premises.

Repairs or Alterations:

Resident(s), Other Authorized Occupants guests or invitees shall not make any repairs, alterations or improvements to the Property or Premises without the prior written consent of Owner/Agent; Examples include painting walls, fastening devices, nails or adhesives, installing satellite dishes, signs, displays or exhibits (except as may be allowed by law) on or in the Premises or areas of the Property. Owner/Agent in its sole authority may deny or reasonably condition any agreed to repairs, alterations or improvements requested by Resident(s). Resident(s) shall not deduct from Rent the costs of any repairs, alterations or improvements that are not completed in compliance with applicable law or regulations. Unlawful deductions from Rent shall be unpaid Rent. Owner/Agent shall not be responsible for any cost of repair or alteration by Residents. Owner/Agent may require Resident(s) to restore the alterations or improvements at Resident(s) sole expense, to the condition they were at the beginning of Resident(s) tenancy, normal wear and tear excepted. Any alteration or improvement that Owner/Agent does not require Resident(s) to restore shall become the property of Owner/Agent at no cost to Owner/Agent.

Keys:

0 (insert number) keys have been provided to the Premises or **2** will be provided on or before **June 30, 2022** [Date].

(insert number) keys have been provided to the Common Areas or **0** will be provided on or before **June 30, 2022** [Date].

0 (insert number) transmitters are provided to the garage or entry gates or **1** will be provided on or before **June 30, 2022** [Date].

The exterior doors to the Premises **[X]** have or **[]** have not been rekeyed.

Resident(s) may only rekey the Premises unless as permitted by law. No lock shall be removed or disabled.

Lead-Based Paint and Lead-Based Paint Hazards:

[X] (If checked) The Premises was constructed prior to 1978. Housing built before 1978 may contain lead-based paint. Lead from this paint including chips or dust from that paint pose health hazards.

A copy of the federally approved "Protect Your Family from Lead in Your Home" pamphlet **[]** has been delivered to Resident(s) or **[X]** is to be delivered to Resident(s) on or before **June 30, 2022** [Date]. Resident(s) are responsible for providing information about lead-based paint and/or lead-based paint hazards to their guests and invitees. Copies of the pamphlet are also available at:

<https://www.epa.gov/lead/protect-your-family-lead-your-home-real-estate-disclosure>

[X] Owner/Agent has no knowledge or **[]** has knowledge of lead-based paint or lead-based paint hazards on the Premises. Lead-based paint or lead-based paint hazards are known to be present in the Premises at: **N/A**

Owner/Agent **[]** has or **[X]** does not have records or reports pertaining to lead-based paint or lead-based paint hazards in the Premises.

Owner/Agent **[]** has provided or **[]** will provide Resident(s) with copies of those records or reports on or before **N/A** [Date].

The following Resident(s) has/have received lead-based paint or lead-based paint hazards documentation referenced above:

Methamphetamine:

Owner/Agent **[]** has or **[X]** has not received an order from a health official that prohibits occupancy of the property due to methamphetamine contamination. If Owner/Agent has received such a notice, the notice and order are attached.

Environmental Hazards Disclosure:

A copy of the Guide for Homeowners, Buyers, Landlords and Tenants **[]** is **[X]** is not attached as Addendum "E".

Periodic Pest Control and Pesticides:

See attached Periodic Pest Control Addendum "F".

Military Ordinance:

The Premises **[]** is or **[X]** is not located within one mile of an area once used for military training which may contain potentially explosive munitions.

Megan's Law Disclosure:

Pursuant to Penal Code §290.46, information about certain registered sex offenders is made available to the public via a web site maintained by the California Department of Justice at: meganslaw.ca.gov. Depending on the offender's criminal history, this may include the residence address of the offender or the community of residence and ZIP code of the offender's residence. Owner/Agent is not required to check this web site. Resident(s) should obtain further information if they so desire from this web site or from law enforcement agencies.

Bed Bug Disclosure:

See attached Bed Bug Addendum "G".

Mold & Mildew Disclosure:

See attached Mold and Mildew Disclosure Addendum "H".

Flood Hazard Disclosure:

1. The Premises **[X]** is or **[]** is not located in a special flood hazard area or an area of potential flooding, if the Owner/Agent has actual knowledge of that fact. For purposes of this section, "actual knowledge" includes the following:
 - a. The Owner/Agent has received written notice from any public agency stating that the Premises is located in a special flood hazard area or an area of potential flooding.
 - b. The Premises is located in an area in which the Owner's mortgage holder requires the Owner to carry flood insurance.
 - c. The Owner currently carries flood insurance.
2. Resident(s) may obtain information about hazards that may affect the Premises from the Internet Web site of the Office of Emergency Services. The Internet Web Site address for the MyHazards is: (<http://myhazards.caloes.ca.gov>)
3. The Owner's insurance does not cover the loss of the Resident(s) personal possessions and it is recommended that the Resident(s) consider purchasing renter's insurance and flood insurance to insure his or her possessions from loss due to fire, flood, or other risk of loss.
4. The Owner/Agent is not required to provide additional information concerning the flood hazards to the Property and the information provided pursuant to this section is deemed adequate to inform the Resident(s).

Asbestos:

The Premises was built **[X]** before or **[]** after 1979. Owner/Agent **[]** is aware of or **[X]** is not aware of asbestos containing construction materials.

The Premises is equipped with operable smoke detection alarms or devices and carbon monoxide devices that are approved by the California State Fire Marshal. The devices and alarms have been installed in accordance with the manufacturer's instructions.

Smoke Detection Alarms and Devices and Carbon Monoxide Devices Disclosures and Duties:

Resident(s) are solely responsible for periodically checking the alarms and devices to determine they are in working order.

Resident(s) are solely responsible for replacing batteries in alarms and devices when necessary. Resident(s) shall immediately notify Owner/Agent, in writing, if an alarm or device is not working properly or becomes inoperable. TAMPERING WITH OR DESTROYING ALARMS AND DEVICES OR REMOVAL OF BATTERIES IS PROHIBITED.

Death in Premises:

A death **[]** has **[X]** has not occurred in the Premises within the previous three (3) years. If a death has occurred, the death was caused by **N/A**.

Pursuant to state law, any death caused by HIV is not required to be affirmatively disclosed.

Satellite Dish or Antennas:

Satellite dishes or antennas may not be installed without the prior written approval of Owner/Agent. Owner/Agent may deny or condition approval of the installation of satellite dishes or antennas to preserve and protect the Premises or Property.

Utility Conservation Requirements:

Resident(s), guests and invitees shall comply with government and utility company requirements to limit, restrict and conserve the use or consumption of water, gas, electricity, garbage or recyclable products or services. Any changes that become necessary to comply with requirements shall not constitute a decrease in housing services or entitle Resident(s) to a reduced rent or value of the Premises. A person that violates these requirements shall be solely responsible for any fee, fine or charge imposed by the government or utility company.

Waterbeds or Liquid-filled Furniture:

Waterbeds or liquid-filled furniture are not allowed without the prior written consent of Owner/Agent. Owner/Agent may deny or condition approval of the installation of waterbeds or liquid-filled furniture to preserve and protect the Premises or Property.

Resident(s) Obligations:

Resident(s) shall, at their expense, keep the Premises clean and in good order and repair that is free of trash, mold, mildew, pests, vermin and unsightly material. Floor coverings, windows, walls, all improvements to the Premises and Property shall be maintained and kept clean and in good repair. All costs related to unclogging drains, toilets and pipes or other plumbing repairs shall be paid by Resident(s) unless the stoppage or leakage is found to be in the main line and the Resident(s), guests or invitees did not cause the condition or resulting damage. Window screens, garbage disposals, window and door locks and all interior fixtures and improvements shall be maintained and repaired at Resident(s) expense.

Resident(s) shall immediately notify Owner/Agent, in writing, of any defect or dangerous condition in or about the Premises or Property. Upon demand of Owner/Agent, Resident(s), occupant(s), guest(s) and invite(s) shall vacate the Premises for a reasonable period of time to allow pest or vermin control work to be done and shall comply with instructions of a licensed pest control operator regarding preparation of the Premises or work at the Premises to be undertaken including removal and storage of personal property, food, perishables and medicine.

Right of Entry:

Resident(s), shall make the Premises available to Owner/Agent at an agreed time or upon twenty-four (24) hours' notice, for the purpose of entering the Premises to (A) make necessary and/or agreed upon repairs, decorations, alterations, improvements or services, (B) show the Property and/or Premises to prospective purchasers, Resident(s), mortgagees, appraisers or contractors and (C) conduct inspections needed to identify conditions requiring necessary services, repairs or improvements or (D) comply with federal, state or local law, and to provide necessary services. Failure to allow access as required herein shall be a material breach of this Agreement.

Notices:

Resident(s) agree that a twenty-four (24) hour written notice shall be reasonable and sufficient notice with the exception of a forty-eight (48) hour written notice to inspect the Premises prior to the Resident(s) moving out, assignment, sublet or tenancy by voluntary act of Resident(s), unless Resident(s) waive the right to notice. If Owner/Agent discloses to Resident(s) that the Property is for sale or exchange, Resident(s) will be notified orally of the showing of the Property or Premises to actual or prospective purchasers.

No written notice will be required if Resident(s) and Owner/Agent agree to an entry for agreed services or repairs if the date and time of entry are within one week of the oral agreement. No notice is required if entry is due to an emergency or if the Resident(s) is present and consents at the time of entry or if the Resident(s) has abandoned or surrendered the Premises.

Notices served on one Resident shall constitute service of the notice on all Resident(s). Notices shall be in writing and may be served at the following addresses or other location subsequently designated by written notice to the other party:

Owner/Agent: **Mosser Companies, Inc.** (Name) (Address) **(415) 284-9000** (Telephone)

Resident(s): ☒ At the Premises; or ☐ other physical address: **N/A**; or if allowed by law, ☐ to Resident by email: **N/A**

Signs:

Resident(s) authorize Owner/Agent to enter, place and display for sale, lease or exchange signs on the Property or the Premises that is in plain view of the public. Resident(s) shall not post or display any signs except political signs as may be allowed by California Civil Code.

Damage:

If by no fault of Resident(s) the Premises is wholly damaged or destroyed by fire, earthquake, flood, accident or other casualty that render the Premises wholly uninhabitable, Resident(s) or Owner/Agent may terminate this Agreement by giving the other a written notice to terminate. Rent shall be abated on the date when the Premises became uninhabitable. If damage was a result of an act of Resident(s), guests or invitees, the Owner/Agent has the right to terminate this Agreement and no reduction or abatement of Rent shall be made.

Insurance:

Resident(s), guests and invitees personal property are not insured by Owner/Agent or, if applicable, a homeowner's association, due to the loss or damage due to fire, theft, criminal or negligent act of others, earthquake, rain, wind, flood or other causes.

RESIDENT(S) SHALL OBTAIN RENTER'S INSURANCE IN AN AMOUNT WHICH, IN RESIDENT'S SOLE JUDGEMENT, IS SUFFICIENT TO PROTECT RESIDENT(S) PERSONAL PROPERTY AND FROM PERSONAL INJURY, LOSS OR DAMAGE CLAIMS.

Temporary Relocation:

Resident(s) shall, upon demand of Owner/Agent, temporarily vacate Premises for a reasonable period of time to allow for fumigation or repairs to the Premises. Resident(s) shall comply with all requirements necessary to prepare the Premises for fumigation or repairs including storage or preparing to store food, medicine, plants and valuables. Resident(s) shall be credited Rent equal to the per diem Rent for the duration of time that Resident(s) were required to vacate the Premises.

Assignment, Subletting and Licensing:

Resident(s) shall not assign, sublet or license (for example: Airbnb users) or otherwise transfer for any period of time all or part of the Premises nor shall Resident(s) permit third parties to occupy the Premises without Owner/Agent's prior written authorization and

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Rental Agreement© (Updated February 2019)

Document digitally signed using RENTCafe eSignature services. Document ID: 880274



consent. Violation of this paragraph is a material breach of this Agreement. Should Resident(s) violate this provision of this Agreement, Owner/Agent may immediately terminate this Agreement. If Owner/Agent is to consent to an assignment or sublease, each prospective assignee, sublessee or transferee shall prior to occupancy complete an application to rent, agree to being credit worthy pursuant to Owner/Agent's policies and procedures or other lawful qualification requirements of Owner/Agent. If all those requirements are approved by Owner/Agent, the prospective assignee, sublessee, licensee or transferee shall sign a written agreement with Owner/Agent to rent the Premises prior to occupancy. Under no circumstances shall such assignee, sublessee, licensee or transferee be deemed an original Resident pursuant to this Agreement. Owner/Agent's consent to one assignment, transfer sublease shall not be construed to any subsequent assignment, sublease or transfer. Any approved assignment or sublease shall not relieve Resident(s) of his or her obligations under this Agreement.

Guest Policy:

Occupancy by additional persons for more than two weeks in any six-month period is prohibited without Owner/Agent's written consent.

Breach of Agreement; Termination:

Resident(s) performance of, and compliance with, each of the terms of this Agreement constitute a condition on Resident(s) right to occupy the Premises and any failure of compliance or performance by Resident(s) shall allow Owner/Agent to forfeit this Agreement and terminate Resident(s)' right to possession of the Premises.

Should Owner/Agent terminate this Agreement prior to expiration of the Term, Resident(s) shall be responsible for lost Rent, rental commissions, advertising expenses, repairs, replacements, restoration and costs necessary to ready Premises for re-rental of the Premises. These amounts may be deducted from the Resident(s) Security Deposit in addition to all other remedies available to Owner/Agent.

Vacating the Premises:

Upon termination or expiration of the Term, Resident(s) shall deliver all keys, transmitters and the Premises to Owner/Agent. The Premises shall be delivered vacant. Resident(s) shall remove all their personal property and debris from the Premises and the Property including the exterior areas of the Property. The Premises shall be delivered in a broom clean condition and in substantially the same condition as of the Commencement Date or Extended Commencement Date, normal wear and tear excepted.

Resident Representation:

Resident(s) warrants that all statements made by Resident(s) in the rental application for the Premises are true and accurate.

Resident(s) shall immediately notify Owner/Agent if and when any Other Authorized Occupant reaches the age of eighteen (18) or becomes an emancipated minor. All such persons must then complete a rental application and agree that Owner/Agent may obtain a credit report on such person(s) and approve that person as a Resident. Any such person shall not be an Original Resident.

If Owner/Agent discovers that the information provided in the rental application and supporting documents is false, such circumstance shall be a material breach of this Agreement.

Negative Reports:

Owner/Agent may submit negative credit information about Resident(s) to credit reporting agencies if Resident(s) fail to perform the terms of payment or other obligations in this Agreement.

Owner/Agent Representation:

Owner/Agent warrants that unless specified in writing, Owner/Agent is not aware of any recorded Notices of Default or Notices of Sale concerning the Property or that Owner/Agent is delinquent for amounts due under a loan secured by the Property or a bankruptcy proceeding affecting the Property.

Waiver:

Waiver by Owner/Agent of a breach of a term, condition or covenant of this Agreement shall not be construed to be a continuing waiver or a waiver of any subsequent breach of this Agreement.

Estoppel Certificate(s):

Upon the written request of Owner/Agent, Resident(s) shall sign and deliver to Owner/Agent a Resident Estoppel Certificate within three (3) business days of its delivery to Resident(s). The failure to timely comply with this provision shall be deemed Resident(s) acknowledgement that the information contained in the Resident Estoppel Certificate is true and correct and may be relied upon by a lender or bona fide purchaser for value.

Mediation and Arbitration:

Resident(s) and Owner/Agent agree to mediate any dispute or claim arising out of this Agreement or any resulting transaction before pursuing judicial or arbitration remedy. Mediation fees shall be divided equally between Resident(s) on the one hand and Owner/Agent on the other hand.

For any dispute or claim that arises for which this paragraph applies, any person that commences a proceeding action without first attempting to mediate or refuses to mediate following a written request to mediate, that party shall not be entitled to the recovery of attorney's fees and costs under any theory of liability including, but not limited to contract, tort, statute or equity.

If efforts at mediation are unsuccessful in resolving any dispute or claim, then such dispute or claim shall be resolved through binding arbitration pursuant to California Code of Civil Procedure §§1280, et seq.

The arbitration shall be held in the County where the Premises are located. Any judicial or arbitration proceeding in which attorney's fees are awarded to the prevailing party shall not exceed \$500.00. The decision of the arbitrator shall be final. The parties waive any right to appeal and judgment may be entered on the arbitration award in accordance with state law.

Unlawful detainer actions, mechanic's liens, matters involving probate, small claims and bankruptcy actions are excluded from this mediation provision. Recording an order of attachment, receivership, injunction, pendency of action (lis pendens) or other provisional remedies shall not constitute a waiver of this paragraph.

Joint & Several Liability:

Whether or not Resident(s) is in possession of the Premises, the Resident(s) shall be jointly and severally liable for all Rent incurred during the term of this Agreement and for all damages caused or permitted by Resident(s), guests or invitees. A breach or abandonment by one or more Resident(s) shall not terminate this Agreement and shall not relieve the remaining Resident(s) from completing and fulfilling the terms of this Agreement.

Time of Essence; Entirety of Contract; Counterparts:

Time is of the essence. This Agreement, including all addenda, incorporates all obligations of the parties. If a provision of this Agreement is invalid or ineffective, the remaining provisions will be in full force and effect. This Agreement may not be amended, altered, changed or extended unless in writing signed by the parties. The terms by the Owner/Agent and Resident(s) are final, complete and inclusive and may not be contradicted by evidence of prior oral agreement or representation.

This Agreement and any supplement, addendum or modification may be signed in two or more counterparts, all of which shall constitute the same writing.

List of Addenda Exhibits and Disclosures Incorporated Into Agreement

Oakland Rent Control, Asbestos Addendum, Bed Bug Addendum, Carbon Monoxide Addendum, Construction Disclosure, Crime Free Housing Addendum, Insurance Info, Lead Paint Disclosure, Mold Addendum, Non-Smoking Addendum, Pest Control Addendum, Prop65 Addendum, Rent Control Addendum, Rules and Regulations, Security Bond Addendum, Holding Deposit Agreement, Smoke Detection Agreement, Utility (YES Energy) Addendum, Lead in your Home Pamphlet

CONCESSIONS:

One-time rent concession of a 1 month rent credit to be applied to the tenants' ledger as of July 1, 2022 contingent upon the tenant completing a 13-month lease. Failure to do so will require the concession offered to be paid back to Mosser Companies in full.

Receipt & Agreement:

Resident(s) shall rent the Premises as described herein subject to the terms and conditions of this Agreement and attached Addenda.

Owner/Agent rents to Resident(s) and Resident(s) rent from Owner/Agent the Premises subject to the following terms and conditions.

By Renter(s)

Date:	_____	Date:	_____
Signed:		Signed:	_____
Name:	Luis Soberanis Pacheco	Name:	_____
Title:	Tenant (If Any)	Title:	(If Any)
Date:	_____	Date:	_____
Signed:	_____	Signed:	_____
Name:	_____	Name:	_____
Title:	_____	Title:	_____
	(If Any)		(If Any)
Date:	_____	Date:	_____
Signed:	_____	Signed:	_____
Name:	_____	Name:	_____
Title:	_____	Title:	_____
	(If Any)		(If Any)

By Owner(s):

Date:	_____	Date:	_____
Signed:		Signed:	_____
Name:	Kelly Hoover	Name:	_____
Title:	Agent for Owner	Title:	_____
			(If Any)

CITY OF OAKLAND



P.O. BOX 70243, OAKLAND, CA 94612-2043
Department of Housing and Community Development
Rent Adjustment Program

TEL (510) 238-3721
FAX (510) 238-6181
TDD (510) 238-3254

NOTICE TO TENANTS OF THE RESIDENTIAL RENT ADJUSTMENT PROGRAM

- Oakland has a Rent Adjustment Program (“RAP”) that limits rent increases (Chapter 8.22 of the Oakland Municipal Code) and covers most residential rental units built before 1983. For more information on which units are covered, contact the RAP office.
- Starting on February 1, 2017, an owner must petition the RAP for any rent increase that is more than the annual general rent increase (“CPI increase”) or allowed “banked” rent increases. These include capital improvements and operating expense increases. For these types of rent increases, the owner may raise your rent only after a hearing officer has approved the increase. No annual rent increase may exceed 10%. You have a right to contest the proposed rent increase by responding to the owner’s petition. You do not have to file your own petition.
- **Contesting a Rent Increase:** You can file a petition with the RAP to contest unlawful rent increases or decreased housing services. To contest a rent increase, you must file a petition (1) within ninety (90) days of the notice of rent increase if the owner also provided this Notice to Tenants with the notice of rent increase; or (2) within 120 days of the notice of rent increase if this Notice to Tenants was not given with the notice of rent increase. If the owner did not give this Notice to Tenants at the beginning of your tenancy, you must file a petition within ninety (90) days of first receiving this Notice to Tenants. Information and the petition forms are available from the RAP drop-in office at the Housing Assistance Center: 250 Frank H. Ogawa Plaza, 6th Floor, Oakland and at: <http://www2.oaklandnet.com/Government/o/hcd/o/RentAdjustment>.
- If you contest a rent increase, you must pay your rent with the contested increase until you file a petition. If the increase is approved and you did not pay the increase, you will owe the amount of the increase retroactive to the effective date of increase.
- Oakland has eviction controls (the Just Cause for Eviction Ordinance and Regulations, O.M.C. 8.22) which limit the grounds for evictions in covered units. For more information contact the RAP office. Oakland charges owners a Rent Program Service Fee per unit per year. If the fee is paid on time, the owner is entitled to get half of the fee from you. Tenants in subsidized units are not required to pay the tenant portion of the fee.
- Oakland has a Tenant Protection Ordinance (“TPO”) to deter harassing behaviors by landlords and to give tenants legal recourse in instances where they are subjected to harassing behavior by landlords (O.M.C. 8.22.600). (City Council Ordinance No. 13265 C.M.S.)
The owner ☒ is ☐ is not permitted to set the initial rent on this unit without limitations (such as pursuant to the Costa-Hawkins Act). If the owner is not permitted to set the initial rent without limitation, the rent in effect when the prior tenant vacated was N/A.

TENANTS’ SMOKING POLICY DISCLOSURE

Smoking (circle one) ☐ IS or ☒ IS NOT permitted in Unit 114, the unit you intend to rent.
Smoking (circle one) ☐ IS or ☒ IS NOT permitted in other units of your building. (If both smoking and non-smoking units exist in tenant’s building, attach a list of units in which smoking is permitted.)

此份屋崙 (奧克蘭) 市租客權利通知書附有中文版本。請致電 (510) 238-3721 索取副本。

La Notificación del Derecho del Inquilino está disponible en español. Si desea una copia, llame al (510) 238-3721.

By Renter(s)

Date: _____

Signed: 

Name: Luis Soberanis Pacheco

Title: Tenant
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

By Owner(s):

Date: _____

Signed: 

Name: Kelly Hoover

Title: Agent for Owner

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)



P.O. BOX 70243, OAKLAND, CA 94612-2043

房屋與社區發展部

(Department of Housing and Community Development)

租金調整計劃 (Rent Adjustment Program)

電話 (510) 238-3721

傳真 (510) 238-6181

TDD (510) 238-3254

住宅租金調整計劃的租客通知書

- 屋崙 (奧克蘭) 市的租金調整計劃 (RAP) 旨在限制租金調漲 (屋崙 (奧克蘭) 市政法規 8.22 章) · 主要針對建於 1983 年以前大多數出租住宅單位。此計劃不適用於受補助單位、多數單家庭住宅、共管公寓和其他部份類型的住宅單位。若要了解哪些單位在本計劃限制範圍內，請聯絡 RAP 辦公室。
- 您有權利向 RAP 提出請願，對超過一般年租金漲幅 (CPI 調漲金額) 的租金調漲提出異議。業主可因以下理由將租金調漲超過 CPI 調整率，但有限制：固定資產改進、營運支出增加，以及遞延年租金調漲 (「累積」調漲)。任何年租金調漲不得超過 10%。若漲幅超過 CPI 調整率，您可要求業主提供租金上漲的書面證明。若業主減少您的住房服務，可視為租金調漲。住房服務減少包括單位狀況出現顯著問題。
- 對租金上漲提出質疑：如果業主在租期一開始就提供這份租客通知，且：(1) 業主還一併提出租金調漲通知，則您必須在收到租金調整通知後九十 (90) 天內提出請願；(2) 業主 沒有 一併提出租金調漲通知，則您必須在收到租金調整通知後的 120 天內提出請願。如果業主在租期一開始時 沒有 提供這份租客通知，您就必須在第一次收到這份租客通知後的九十 (90) 天內提出請願。如需相關資訊並索取請願書，請前往房屋協助中心 (Housing Assistance Center) 的租金調整計劃 (RAP) 辦公室親自索取：250 Frank H. Ogawa Plaza, 6th Fl., Oakland；還可上網站取得：
<http://www2.oaklandnet.com/Government/o/hcd/o/RentAdjustment>
- 如果您對租金調漲有異議，在您提出請願之前，您仍必須支付質疑的調漲租金。在您正式提出請願後，如果租金調漲通知單中另外陳述了以 CPI 調整率計算的金額，則您必須支付原租金加上 CPI 調漲金額。若通知單中並未另外陳述 CPI 調整率，您可支付在收到租金調漲通知單前所支付的租金。若調漲經核准但您並未支付，您將積欠從調漲生效日期起的調漲金額。
- 屋崙 (奧克蘭) 市的驅逐管制規則 (屋崙 (奧克蘭) 市政法規 8.22 中的「驅逐正當理由」) 對所管制單位的驅逐理由設有限制。若要瞭解更多資訊，請聯絡 RAP 辦公室。
- 屋崙 (奧克蘭) 市政府每年對每個出租單位向業主收取「租金計劃服務費」(Rent Program Service Fee)。若此費用準時繳納，則業主有權向您收取一半費用。您支付的年費不是租金的一部分。受補助單位的租客無需支付該費用的租客部分。
- 屋崙 (奧克蘭) 市的租客保護法令 (Tenant Protection Ordinance, TPO) 旨在遏阻房東的騷擾行為，並且在租客受房東騷擾的情況下賦予租客法律追索權 (屋崙 (奧克蘭) 市政法規 8.22.600)。(市議會條例 13265 號 C.M.S.)

針對租客的吸煙政策聲

單位_____ (您有意承租的單位)「允許」或「不允許」吸煙 (圈選一項)。

您所住建築物中的其他單位「允許」或「不允許」吸煙 (圈選一項)。(若租客所住的建築物中同時包含可吸煙和不可吸煙的單位，應附上一張可吸煙單位列表。)

本建築物「有」或「沒有」指定的戶外吸煙區 (圈選一項)。該吸煙區位於_____。

我於_____ 收到本通知書 _____
(日期) (租客簽名)

此份屋崙 (奧克蘭) 市租客權利通知書附有中文版本。請致電 (510) 238-3721 索取副本。

La Notificación del Derecho del Inquilino está disponible en español. Si desea una copia, llame al (510) 238-3721.

Bản Thông Báo quyền lợi của người thuê trong Oakland này cũng có bằng tiếng Việt. Để có văn bản tiếng Việt, xin gọi (510) 238-3721.



P.O. BOX 70243, OAKLAND, CA 94612-2043
Departamento de Desarrollo Comunitario y Vivienda
Programa de Ajustes en el Alquiler

TEL (510) 238-3721
FAX (510) 238-6181
TDD (510) 238-3254

AVISO A LOS INQUILINOS DEL PROGRAMA DE AJUSTES EN EL ALQUILER RESIDENCIAL

- Oakland tiene un Programa de Ajustes en el Alquiler (Rent Adjustment Program, RAP) que limita los aumentos de renta (Capítulo 8.22 del Código Municipal de Oakland) y cubre a la mayor **■** de las unidades residenciales en renta construidas antes de 1983. No aplica para unidades subsidiadas, la mayor **■** de las viviendas de una sola familia, condominios y algunos otros tipos de unidades. Para más información sobre las unidades cubiertas, contacte a la oficina de RAP.
- Usted tiene derecho a presentar una petición con RAP para impugnar un aumento de alquiler que sea mayor al ajuste anual del Índice de Precios al Consumidor (Consumer Price Index, CPI). Un propietario puede realizar un aumento en la renta mayor al índice CPI, pero con límites, para: mejoras de capital, aumentos en los gastos operativos y aumento anual diferido de renta ("bancario"). Ningún aumento anual a la renta podrá exceder el 10%. Si usted lo solicita, el propietario deberá proporcionarle un resumen por escrito de las razones para cualquier aumento que supere la tasa del CPI. Si el propietario disminuye sus servicios de vivienda, esto podrá ser un aumento en su renta. Las disminuciones en los servicios de vivienda incluyen problemas sustanciales con las condiciones de una unidad.
- **Cómo disputar un aumento de renta:** Si el propietario entregó este Aviso a los Inquilinos al inicio del periodo de arrendamiento, deberá presentar una solicitud: (1) en un plazo de (90) días a partir de la fecha del aviso de aumento de renta si el propietario también proporcionó este Aviso a los Inquilinos con la notificación del aumento de la renta; o (2) en un plazo de 120 días a partir de la fecha de recepción del aviso de aumento de renta si este Aviso a los Inquilinos no fue entregado con la notificación de aumento de la renta. Si el propietario no entregó este Aviso a los Inquilinos al inicio del periodo de arrendamiento, deberá presentar una solicitud en un plazo de (90) días a partir de la fecha en que recibió por primera vez este Aviso a los Inquilinos. Encontrará información y formularios disponibles en la oficina RAP en el Centro de Asistencia de Vivienda: 250 Frank H. Ogawa Plaza, 6th Fl, Oakland, también puede visitar: <http://www2.oaklandnet.com/Government/o/hcd/o/RentAdjustment>
- Si usted impugna un aumento de renta, debe pagar su renta con el aumento impugnado hasta que presente la petición. Una vez que haya presentado su petición, si el aumento de renta refleja el monto de la tasa CPI de manera separada, usted debe pagar su renta más el incremento CPI. Si la tasa CPI no ha sido reflejada por separado, usted podrá pagar la renta que pagaba antes del aviso de aumento de renta. Si el aumento es aprobado y usted no lo pagó, adeudará la suma del incremento retroactivo a la fecha efectiva del aumento.
- Oakland tiene controles de desalojo (Ordenanza de Desalojo por Causa Justa y Reglamentos, O.M.C. 8.22) que limitan los motivos de desalojo en las unidades cubiertas. Para más información contacte la oficina RAP.
- Oakland cobra a los propietarios una Tarifa de Servicio del Programa de Alquiler (Rent Program Service Fee) por unidad al año. Si la tarifa se paga a tiempo, el propietario tiene derecho a cobrar la mitad del costo de esta tarifa al inquilino. Su pago por la tarifa anual no forma parte del alquiler. No se requiere que los inquilinos de unidades subsidiadas paguen la porción del inquilino de la tarifa.
- Oakland posee una Ordenanza de Protección al Inquilino (Tenant Protection Ordinance, TPO) para impedir comportamiento abusivo por parte de propietarios y para ofrecerles a los inquilinos recursos legales en instancias donde han sido víctimas de comportamiento abusivo por parte de propietarios (O.M.C. 8.22.600). (Ordenanza del Concejo Municipal No. 13265 C.M.S.)

INFORMACIÓN A LOS INQUILINOS SOBRE LAS POLÍTICAS PARA FUMADORES

Fumar (encierre en un círculo) ESTÁ o NO ESTÁ permitido en la Unidad _____, unidad que usted pretende alquilar.
Fumar (encierre en un círculo) ESTÁ o NO ESTÁ permitido en otras unidades de su edificio. (Si hay disponibilidad de ambas unidades, fumador y no fumador, en el edificio del inquilino, adjunte una lista de las unidades donde se permite fumar).
(Encierre en un círculo), HAY o NO HAY un área designada al aire libre para fumar. Se encuentra en _____.

Recibí una copia de este aviso el _____

(Fecha)

(Firma del inquilino)

此份屋崙(奧克蘭)市租客權利通知書附有中文版本。請致電 (510) 238-3721 索取副本。

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Bản Thông Báo quyền lợi của người thuê trong Oakland này cũng có bản tiếng Việt. Để có bản tiếng Việt, xin gọi (510) 238-3721.

Revisado el 23 de septiembre de 2016

HCDrap201610a SP

CITY OF OAKLAND



NOTICE TO OAKLAND RESIDENTIAL TENANTS OF NEW TENANT

On November 5, 2014, the Oakland City Council adopted the Tenant Protection Ordinance (TPO), which prohibits various harassing behaviors by owners against tenants – thereby bolstering existing laws and leases that protect tenants. The TPO creates remedies that could be enforced by private civil rights of action.

The TPO prohibits actions by owners or their agents done in bad faith, such as:

- ▢ Influence or attempt to influence a tenant to vacate a rental unit through fraud, intimidation or coercion
- ▢ Threaten by word or gesture with physical harm
- ▢ Fail to perform repairs and maintenance required by written contract or by State, County, or municipal housing, health or safety laws, or threatens to do so.

FILING A CLAIM OF HARASSMENT

Violations of the TPO may be enforced by civil remedies. **Claims of harassment cannot be filed with the Rent Adjustment Program.**

For information on how to file a claim of harassment in court, contact the following organization for legal advice and consultation:

Centro Legal de la Raza Clinics
250 Frank H. Ogawa Plaza, 6th Floor (Housing Assistance Center)
Oakland, CA 94612
(510) 437-1554

Legal clinics are held in the Housing Assistance Center, Mondays, Tuesdays and Wednesdays from 9:30 a.m. to 12:00 noon, on a first-come, first-served basis.

- ▢ The entire TPO can be found on Rent Adjustment Program Website at www2.oaklandnet.com.
- ▢ Copies of the Ordinance can be obtained at the Housing Assistance Center.

For more information and referrals, call (510) 238-3721.

屋崙 (奧克蘭) 市政府



屋崙 (奧克蘭) 市住宅租客 《租客保護法令》通知

2014 年 11 月 5 日，屋崙 (奧克蘭) 市議會通過了《租客保護法令》(Tenant Protection Ordinance，簡稱 TPO)，禁止業主對租客做出各種騷擾行為，藉此加強現行法律與租約對租客的保障。該法令明訂可經由個人民事訴訟權要求強制執法的補救措施。

該法令禁止業主或其代理人採取惡意行動，例如：

- 透過詐騙、恐嚇強迫手段影響或試圖影響租客，使其搬離租房；
- 用言語威脅或作勢要造成人身傷害；
- 未遵照契約書或州、縣或市級房屋、衛生或安全法律的規定修理和維護房屋，或威脅不進行此類修理和維護。

提出騷擾告訴

對於違反該法令的行為，可透過民事補救措施要求強制執法。您無法向租金調整計劃 (**Rent Adjustment Program**) 提出騷擾告訴。

關於如何向法院提出騷擾告訴，請與以下組織聯絡以尋求法律意見及諮商：

Centro Legal de la Raza Clinics
250 Frank H. Ogawa Plaza, 6th Floor (Housing Assistance Center)
Oakland, CA 94612
(510) 437-1554

諮詢會的舉行時間為星期一、星期二和星期三，上午 **9:00** 至 **11:30**。

- 該法令全文請至網站 www2.oaklandnet.com 參閱「租金調整計劃」(Rent Adjustment Program) 部分。
- 該法令的副本可向房屋協助中心 (Housing Assistance Center) 索取。
- 欲知詳情與尋求轉介，請致電 (510) 238-3721。

CIUDAD de OAKLAND



AVISO A INQUILINOS RESIDENCIALES DE OAKLAND SOBRE LA ORDENANZA DE PROTECCIÓN DE ARRENDATARIOS

El 5 de noviembre de 2014, el Concejo Municipal de Oakland adoptó la Ordenanza de Protección de Arrendatarios (Tenant Protection Ordinance, o TPO), la cual prohíbe diversas conductas de hostigamiento a los inquilinos por parte de los propietarios de viviendas, fortaleciendo así las leyes y arrendamientos vigentes actualmente que protegen a los inquilinos. La TPO crea medidas correctivas que pueden ser ejecutadas a través de derechos privados de acción civil.

La TPO prohíbe acciones por parte de los propietarios o sus agentes que hayan sido realizadas

- ▯ Influnciar o tratar de influenciar a un inquilino a desalojar una vivienda de alquiler a través del fraude, intimidación o coerción.
- ▯ Amenazar con daño físico a través de palabras o gestos.
- ▯ Dejar de realizar reparaciones y mantenimiento requeridos por el contrato por escrito o por las leyes de vivienda estatales, del condado o municipales, de salud o de seguridad, o amenace con hacerlo.

PRESENTACIÓN DE UNA RECLAMACIÓN DE HOSTIGAMIENTO

Las violaciones a esta TPO podrán ser ejecutadas a través de acciones correctivas civiles. **No pueden presentarse reclamaciones de hostigamiento con el Programa de Ajuste de Alquileres.**

Para obtener información sobre cómo presentar una reclamación de hostigamiento en un tribunal, sirva comunicarse con la siguiente organización a fin de recibir asesoría legal:

Centro Legal de la Raza Clinics
250 Frank H. Ogawa Plaza, 6th Floor (Housing Assistance Center)
Oakland, CA 94612
(510) 437-1554

Se presentan cursos los lunes, martes y miércoles de 9:00 a.m. a 11:30 a.m.

- ▯ Puede encontrar la versión completa de la TPO en el sitio Web del Programa de Ajuste de Alquileres en www2.oaklandnet.com.
- ▯ Puede obtener una copia de la Ordenanza en el Centro de Asistencia para la Vivienda.
- ▯ Si desea obtener información adicional o alguna recomendación, llame al (510) 238-3721.



YES ENERGY
UTILITY ADDENDUM FOR UNITS GOVERNED BY THE
CALIFORNIA RENT STABILIZATION AND ARBITRATION ORDINANCE

THIS UTILITY ADDENDUM (hereinafter "Utility Addendum") is incorporated into the Residential Tenancy Agreement ("Lease") entered into by the undersigned Tenant ("You" or "Tenant") and Mosser Companies ("we" "us" or "Landlord") and is in addition to all terms and conditions contained in the Lease. To the extent that the terms of this Utility Addendum conflict with those of the Lease, specifically Paragraph 25 ("Utilities") of the Lease, which is superseded by this Addendum, this Utility Addendum shall control.

1. Landlord shall be responsible for the payment of the following utility services for your unit (*mark as appropriate*):

☐ Electricity	☐ Gas	☒ Water	☐ Trash/Garbage
☐ Telephone	☐ Cable TV/Sat.	☒ Sewer	☐ Energy to heat Hot Water

Each utility service not provided at the Landlord's expense, i.e., not checked above, is to be provided to your unit at Tenant's expense.

2. For the utilities marked below, it is Tenant's sole responsibility to initiate such service in the name of an authorized Tenant residing in the unit prior to accepting the unit, and to terminate such service prior to vacating the unit. Charges for these utilities are billed to you directly from the utility provider and are not payable to Landlord or Landlord's agent as additional rent. They include (*mark as appropriate*):

☒ Electricity	☒ Gas	☐ Water	☒ Trash/Garbage
☒ Telephone	☒ Cable TV/Sat.	☐ Sewer	☒ Energy to heat Hot Water

In the event Resident does not initiate service for required utilities (electric and gas) by the lease commencement date Resident will be charged a **\$25.00** service fee and will be responsible for reimbursement of actual utility costs incurred by the owner. Additionally Resident will be held responsible for a **\$10.00** service fee plus actual utility costs for every sub sequential utility bill. In the event Resident does not terminate such service prior to vacating the unit Resident will be responsible for a **\$10.00** service fee plus actual utility costs incurred by the owner.

3. For all other utilities not checked in Paragraphs 1 or 2 above, Tenant shall pay to Landlord or Landlord's agent amounts invoiced by Landlord or Landlord's third-party billing provider ("Billing Provider") in accordance with the terms of this Addendum. Pursuant to the California Residential Rent Stabilization and Arbitration Ordinance ("the Ordinance") Section 37.2(p), charges for utilities paid to Landlord or Landlord's agent are considered Rent since such utilities are generally considered Housing Services under Section 37.2(g) of the Ordinance. In addition to the monthly rent amount set forth in Paragraph 4 of the Lease, Tenant is also responsible for paying to Landlord additional charges for the utilities not checked in Paragraphs 1 or 2 above as invoiced by Landlord or Billing Provider. The amounts reflected on the utility bill sent by Landlord or Billing Provider may be considered a part of Rent for the purpose of calculating allowable rent increases under the Ordinance. Tenant acknowledges that a major goal of this billing system is to encourage conservation. Effective June 23, 2009, California residents are required to recycle. If tenant collectively conserve utilities, any resulting reduction in costs will be passed on directly to Tenant. Tenant is only required to pay each month the amount reflected on the utility bill sent by Landlord or the Billing Provider.
4. For the monthly bill, Tenant will be charged for water, sewer, and garbage service based upon an allocation formula as further described below. All water, sewer, and garbage related charges assessed to the Landlord of the Premises may be used to calculate the amount charged to each Tenant under the selected formula, including, but not limited to, storm water charges, water, or sewer related charges contained on tax bills, and all miscellaneous charges contained on the utility bills received from the local water, sewer and trash providers.

Mosser Companies

308 Jessie Street
San Francisco, CA 94103

Telephone 415.284.9000
Fax. 415.284.9020

www.mosserco.com



- a. The allocation formulas set forth below will calculate your allocated share of the utilities and services provided and all costs of providing same, in accordance with state and local statutes. Under any allocation method, Tenant may be paying for utility usage in common areas or in other residential units as well as administrative fees or other charges imposed by the utility provider. Both Landlord and Tenant agree that using the allocation formula set forth herein as a basis for allocating utility costs is fair and reasonable, while recognizing that the allocation method does not reflect actual utility consumption for Tenant.
- b. In anticipation of the problem of Tenant overpayment, LANDLORD will subtract a Common Area Deduction, or CAD, from the water bill and the sewer bill before allocating the remaining portion of the bill to Tenant as described in this Utility Addendum. Landlord and Tenant agree that the exact amount of sewer and water consumed in the common areas cannot be determined precisely, but that the estimate above is a fair and reasonable estimate of the usage in common areas even though common area sewer and water is not separately metered. Accordingly, Landlord will deduct the CAD from the total service charge each month before allocation of such bills to Tenant according to the allocation formulas described below. Actual CAD percentages will vary depending on the Lessor. Tenant may request information about the CAD from LANDLORD at any point during the life of the Agreement.
- c. Utility service charges are allocated according to an allocation formula based upon an occupancy factor. To calculate the individual utility charge for each unit, the total adjusted monthly utility bill is divided by the total number of Occupancy Allocation Factors in the property, and that figure is then multiplied by the Occupancy Allocation Factor (above) for each unit. The Occupancy Allocation Factor is determined by the total number of occupants listed on the attached Residential Lease/Rental Agreement. The occupancy factor is determined by the following:

No. of Tenants	Allocation Factor	Assumption
1	1	One person's estimated usage
2	1.6	Two people use 60% more than one person
3	1.9	Three people use 90% more than one person
4	2.2	Four people use 120% more than one person
5	2.5	Five people use 150% more than one person
6	2.8	Six people use 180% more than one person
7	3.1	Seven people use 210% more than one person

5. Tenant represents and warrants that all occupants who will be residing in the Premises are accurately identified in the Lease. Tenant further agrees to notify Landlord immediately of any change in the number of occupants.
6. Landlord may modify the method by which utilities are furnished to your unit and/or billed to Tenant during the term of the Lease. This includes, but is not limited to, sub-metering the unit for certain utility services and/or changing the method of allocation. Such changes may also include changing the common area deduction percentage or goodwill deduction percentage. In the event Landlord chooses to modify the process or formula used for charging utility services to your unit, Tenant will be provided at least thirty (30) days prior written notice of such modification.
7. Utility bills and fees for water, sewer, and garbage billing service.
 - a. Utility bills for water, sewer, and garbage service are billed in arrears and will be issued by Landlord's Billing Provider or by Landlord directly on a monthly billing statement.
 - b. Payment is to be paid to Mosser Companies on the 1st of each month. Failure to pay utilities as required by this Addendum will be treated as non-payment of rent.
 - c. The failure to pay this utility bill is a material and substantial breach of the Lease and shall entitle Landlord to exercise all remedies available under the Lease, although neither Landlord nor the Billing Provider has the authority to turn off Tenant's utilities for failure to pay the utility charges. Landlord is entitled to use your Security Deposit to recover unpaid utility charges.

Mosser Companies

308 Jessie Street
San Francisco, CA 94103

Telephone 415.284.9000
Fax. 415.284.9020

www.mosserco.com



- d. Utility bills will be issued to Tenant on a monthly basis, with timing based on the billing cycle of the utility provider's bill to Landlord. When Tenant moves out, however, there will be a need to estimate the final bill. The estimate will be based upon an average of the past 3 months of your billing history. If you have occupied the unit for less than three months, we will take an average of how many months you have occupied the unit. The Billing Provider will issue a final bill to Landlord and it may be charged against your Security Deposit.
 - e. If you move in to or out of the unit on a date other than the first of the month, then you will be charged for the full period of time that you were living in, occupying, or responsible for payment of rent or utility charges on the unit.
- 8. Tenant agrees to comply with any utility conservation efforts implemented by Landlord. Tenant shall also abide by all applicable laws and ordinances pertaining to utilities, including but not limited to mandated trash and recycling programs.
- 9. Tenant agrees not to disturb, tamper, adjust, or disconnect any utility service sub-metering device or system. Tenant shall not purposely utilize utilities of another unit whether or not such unit is occupied. Tenant shall not "hack into" cable or other satellite dish system, but will instead contract with appropriate parties for use of such services.
- 10. Landlord is not liable for any losses or damages Tenant may incur as the result of outages, interruptions, or fluctuations in utilities provided to your unit unless such loss or damage was the sole result of gross negligence of Landlord or its employees. Tenant releases Landlord from any and all such claims and waives any claims for offset or reduction of rent or diminished rental value of the unit due to such outages, interruptions, or fluctuations.
- 11. Landlord's waiver of any provision of this Utility Addendum, or the Lease, will not constitute a waiver of any other breach. Landlord's acceptance of rent or any other payment with knowledge of Tenant's failure to pay utility charges does not waive Landlord's right to enforce any provision of this Utility Addendum or the Lease. No waiver will exist unless made in writing and signed by both Tenant and Landlord.
- 12. If any provision of this Utility Addendum or the Lease is declared or found to be unenforceable under applicable California law or the Ordinance, such provision shall be ineffective to the extent of such invalidity or unenforceability only, without invalidating or otherwise affecting the remainder of this Addendum or the Lease. Except as specifically stated herein, all other terms and conditions of the Lease and this Addendum shall remain unchanged.

Mosser Companies

308 Jessie Street
San Francisco, CA 94103

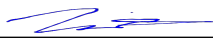
Telephone 415.284.9000
Fax. 415.284.9020

www.mosserco.com



AGREED:
By Renter(s)

Date: _____

Signed: 

Name: Luis Soberanis Pacheco

Title: Tenant
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

By Owner(s):

Date: _____

Signed: 

Name: Kelly Hoover

Title: Agent for Owner
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

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San Francisco, CA 94103

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Fax. 415.284.9020

www.mosserco.com

Smoke Detection Device Addendum

This Smoke Detection Device Addendum ("Addendum") is created in compliance with California Health and Safety Code 13113.7 & 13114(e) and is intended by the parties to be incorporated into the rental/lease agreement between the resident(s) and owner (listed below) that governs the tenancy of the resident(s).

This Addendum is made **184 13th Street Associates LLC** (Owner/Agent) and **Luis Angel Soberanis Pacheco** (Resident) for the premises located at **184 13 St. APT 114**, (if applicable), **Oakland**, California **94612** ("Premises").

Resident acknowledges as follows:

1. The Premises is equipped with operable Smoke Detection Device(s) that have been approved and listed by the State Fire Marshal pursuant to California Health and Safety Code Section 13114 and that have been installed in accordance with the manufacturer's instructions.

2. Resident has been shown where each Smoke Detection Device is located and Owner has explained the operation and maintenance of each Device to Resident. These Smoke Detection Device(s) are located in the Premises as follows:

In Unit

3. These Smoke Detection Device(s) (*check one*): ☒ are battery operated ☐ are not battery operated.

4. Upon possession of the Premises, Resident has inspected and tested said Smoke Detection Device(s) and confirmed that each of the Devices(s) are operable and in good working condition.

5. Resident understands and agrees that as part of Resident's responsibilities under Resident's rental/lease agreement, Resident is responsible for checking the Smoke Detection Device(s) on a regular basis (weekly) to ensure they are working properly and that the batteries are still functioning. Resident is also responsible for replacing the battery in the Smoke Detection Device(s) when necessary and as required by law.

6. Resident agrees to notify Owner in writing immediately if Smoke Detection Device(s) is not working properly or becomes inoperable.

7. Resident agrees he/she will not tamper with, destroy, remove, take out batteries from (except to replace), unplug or otherwise de-activate the Smoke Detection Device(s).

8. Resident understands and agrees that Owner may enter the Premises upon a 24 hour notice to Resident to test, maintain, install, and/or repair the Smoke Detection Device(s) pursuant to law.

9. If there are any conflicts between the terms of Resident's current Rental/Lease agreement and this Addendum, this Addendum shall control.

Smoke Detection Device Addendum

Resident understands and agrees to the terms stated in this Addendum.

By Renter(s)

Date: _____

Signed: 

Name: Luis Soberanis Pacheco

Title: Tenant
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

By Owner(s):

Date: _____

Signed: Kelly Hoover

Name: Kelly Hoover

Title: Agent for Owner

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Rules and Regulations Addendum

Addendum "C" to Residential Rental Agreement Dated: **June 30, 2022**

GENERAL

- New policies and rules or amendments to this document may be adopted by Owner/Agent upon giving 30 days' written notice to Resident.
- Occupancy by additional persons for more than two weeks in any six-month period is prohibited without Owner/Agent's written consent. At the discretion of the Owner/Agent, guest may be required to go through the application process and, if approved, must agree to Residential Rental Agreement.
- Resident(s) may be assessed a charge for the actual and reasonable fees and costs, including out of pocket expenses, incurred by the Owner/Agent for any lock-out.
- Resident(s) is responsible for any violation of these rules by Resident(s), guests and invitees.

NOISE AND CONDUCT

- Resident(s) shall not make or allow any excessive noise in the Premises nor permit any actions, which will interfere with the rights, comforts or conveniences of other persons, including those in neighboring properties.
- Resident(s) shall refrain from activities and conduct outside of the Premises (in common areas, parking areas, or recreational facilities) which annoy or disturb other persons.
- Resident(s) shall refrain from creating, or allowing to be created, any noise that is disturbing to other persons between the hours of 10 p.m. and 8 a.m. or as required by government ordinance or regulation.
- Resident(s) shall not use aluminum foil or similar material as a window covering and shall obtain the written approval of Owner/Agent before using any window covering visible from the exterior of the building.

CLEANLINESS AND TRASH

- Resident(s) shall keep the Premises and Property clean, sanitary and free from objectionable odors at all times.
- Resident(s) shall ensure that trash and other materials are not permitted to accumulate so as to cause a hazard or be in violation of any health, fire or safety ordinance or regulation.
- Resident(s) shall ensure that furniture is kept inside the Premises and that unsightly items are kept out of view.
- Resident(s) shall refrain from leaving articles on balconies or common areas.
- Resident(s) shall refrain from shaking or hanging clothing, curtains, rugs, and other coverings and cloths outside of any window, ledge, or balcony.
- Resident(s) shall refrain from disposing of combustible or hazardous material in trash containers or garbage bins.

SAFETY/SECURITY

- Security is the responsibility of each Resident, guest and invitee. Owner/Agent assumes no responsibility or liability, unless otherwise required by law, for Resident(s), guests and invitees safety and security, or for injury or damage caused by criminal acts.
- Resident(s) should ensure that all doors and windows are locked during Resident(s) absence. Resident(s) must notify Owner/Agent if locks become inoperable.
- Resident(s) should ensure that all appliances are turned off following use and before departing from the Premises.
- When leaving for an extended period, Resident(s) should notify Owner/Agent how long Resident(s) will be away.
- Resident(s) shall not store gasoline, solvent or other combustible material in the Premises and Property.
- Resident(s) shall ensure that no personal belongings, including bicycles, play equipment or other items are left unattended in common areas and exterior of the Property.

MAINTENANCE/LAUNDRY FACILITIES/GENERAL UPKEEP

- Resident(s) shall report, in writing, any maintenance conditions or repair requests to the Owner/Agent, especially when a repairing delay might injure a person or cause damage to the Premises or Property.
- Laundry facilities (if provided) are for the convenience of Resident(s). Owner/Agent does not warrant the condition or safety of the appliances provided. Owner/Agent is not responsible for any damage or loss to Resident(s), guests, or invitees clothing or possessions incurred as a result of the use of equipment, theft or any other cause. Laundry facilities are available only during posted hours. Resident(s) shall immediately clean all surfaces that were used by Resident(s), guests, or invitees.
- Resident(s) shall not install an antenna or satellite dish without Owner/Agent's prior written consent.
- Illegal material shall not be stored, used, disposed of, or sold or manufactured on the Premises or Property.
- Recyclable material shall be disposed of pursuant to state and local laws.

Rules and Regulations Addendum

Addendum "C" to Residential Rental Agreement Dated: **June 30, 2022**

COMMON AREAS

- Resident(s) shall not post notices, advertisements, signs or any other material in elevators, laundry rooms, mailboxes or elsewhere about the Premises or Property without the prior written consent of Owner/Agent.
- The use of recreation, sports and hobby equipment, including but not limited to toys, bikes, big wheels, mopeds, skateboards, and roller skates is prohibited except in areas designated by Owner/Agent.
- Resident(s), guests or invitees shall not damage the Property.
- Personal property shall not be left, placed or displayed on any window, ledge, balcony, or patio.
- Barbecues and grills are not allowed on balconies, inside the Premises or within four (4) feet of any exterior wall.

USE OF RECREATION FACILITIES

- Access to and use of recreation facilities, if provided, may be closed or restricted for cleaning, repair, maintenance, meetings, rental complex functions and other similar or related activities. Owner/Agent reserves the right to temporarily or permanently close recreation facilities by posting a sign or notice at the affected facility. Closure or restriction of access to any or all of the recreation facilities shall not constitute a decrease in housing services or grounds for Resident(s) to withhold, reduce or abate rent or any other charge under the Rental Agreement.
- All recreation facilities may be used only during the hours posted.
- Violation of these rules by Resident(s), guests, or invitees may result in suspension of recreation privileges or termination of tenancy.

Rules and Regulations Addendum

Addendum "C" to Residential Rental Agreement Dated: **June 30, 2022**

The undersigned Resident(s) acknowledges(s) having read and understood the foregoing.

By Renter(s)

Date: _____

Signed: 

Name: Luis Soberanis Pacheco

Title: Tenant
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

By Owner(s):

Date: _____

Signed: Kelly Hoover

Name: Kelly Hoover

Title: Agent for Owner

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Asbestos Disclosure Addendum

Asbestos is a building material commonly found in buildings constructed before 1981. It has been determined that the mere existence of Asbestos does not pose a health risk as long as the asbestos is not disturbed and the fibers are not released into the air. As such, owners and residents must take reasonable precautions to minimize the risk of disturbance of asbestos materials.

This Addendum is intended as a **WARNING** that the Premises may contain asbestos, which may be present in buildings constructed prior to 1981 and may expose him/her to a chemical known by the State of California to cause cancer.

This Asbestos Disclosure Addendum ("Addendum") is made between: **184 13th Street Associates LLC** ("Owner/Agent") and **Luis Angel Soberanis Pacheco** ("Resident") for the rental property located **184 13 St. APT 114**, (if applicable), **Oakland**, California **94612** ("Premises").

The terms of this Addendum are intended by the parties to be added to and incorporated into the rental/lease agreement between Resident and Owner/Agent that currently governs the tenancy of Resident(s) in the Premises.

(Owner/Agent must check one)

☐ Owner/Agent discloses that the Premises contains asbestos materials and/or asbestos hazards that are located in or around the following areas of the Premises:

N/A

☒ Owner/Agent has no knowledge of asbestos containing materials and/or asbestos hazards located in or around the Premises, however, Owner/Agent notifies Resident that the Premises may contain asbestos materials.

1. Resident understands and agrees that as his/her part of taking reasonable steps to minimize the risk of exposure to asbestos-materials, he/she will not do anything that may disturb the building materials of the Premises in a manner that may cause the asbestos fibers to be released. This includes, but is not limited to the following:
2. Scraping, pounding, sanding or remodeling any portion of the Premises that may release dust and which may cause the asbestos materials to be released into the air.
3. Making any repairs, improvements or alterations to the Premises without obtaining Owner/Agent's prior written consent and (when appropriate) providing Owner/Agent with a plan to prevent the release or exposure of any asbestos.
4. Limiting contact with the ceiling of the Premises, including not hanging hooks or other objects in the ceiling, not penetrating the ceiling in any way, not drilling holes in the ceiling or attaching fixtures to the ceiling, not allowing objects to come in contact with the ceiling, limiting the contact of water with the ceiling, not cleaning or painting ceiling, no repair to ceiling or light fixtures and no other activity that may cause damage or disturbance to the ceiling or other asbestos-material located on the Premises.



Form provided by the East Bay Rental Housing Association®

www.ebrha.com

Form Asbestos Disclosure Addendum© (11/11)

Document digitally signed using RENTCafe eSignature services. Document ID: 880274



Resident agrees to immediately notify Owner/Agent in writing of any signs of asbestos disturbance or other damage to the Premises, such as crumbling, cracking, peeling or deterioration of the walls or ceiling. Resident also agrees to immediately notify Owner/Agent in writing if any of the above stated activities in paragraphs 1-3 occur.

By signing below, the undersigned Resident(s) agree and acknowledge having read and understood this Addendum.

By Renter(s)

Date: _____

Signed: 

Name: Luis Soberanis Pacheco

Title: Tenant
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

By Owner(s):

Date: _____

Signed: Kelly Hoover

Name: Kelly Hoover

Title: Agent for Owner

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)



Bed Bug Addendum

Addendum "G" to Residential Rental Agreement Dated: **June 30, 2022**

This Addendum defines Resident(s) responsibilities concerning habitability of the Premises. Resident(s) agree(s) that Resident(s) is/are to periodically inspect the Premises regarding habitability of the Premises including an inspection of the presence of bed bugs. Resident(s) agree(s) that Resident(s) is/are to disclose and continually disclose in writing to Owner/Agent of any allegation of habitability claims, including the presence of bed bugs.

INFORMATION ABOUT BED BUGS

Bed Bug Appearance: Bed bugs have six legs. Adult bed bugs have flat bodies about ¼ of an inch in length. Their color can vary from red and brown to copper colored. Young bed bugs are very small. Their bodies are about 1/16 of an inch in length. They have almost no color. When a bed bug feeds, its body swells, may lengthen, and becomes bright red, sometimes making it appear to be a different insect. Bed bugs do not fly. They can either crawl or be carried from place to place on objects, people or animals. Bed bugs can be hard to find and identify because they are tiny and try to stay hidden.

Life Cycle and Reproduction: An average bed bug lives about 10 months. Female bed bugs lay one to five eggs per day. Bed bugs grow to full adulthood in about 21 days. Bed bugs can survive months without feeding.

Bed Bug Bites: Because bed bugs usually feed at night, most people are bitten in their sleep and do not realize they were bitten. A person's reaction to insect bites is an immune response and so varies from person to person. Sometimes, the red welts caused by the bites will not be noticed until many days after a person was bitten, if at all.

Common Signs and Symptoms of a Possible Bed Bug Infestation:

- ❑ Small red to reddish brown fecal spots on mattresses, box springs, bed frames, linens, upholstery or walls.
- ❑ Molted bed bug skins, white, sticky eggs or empty eggshells.
- ❑ Very heavily infested areas may have a characteristically sweet odor.
- ❑ Red, itchy bite marks, especially on the legs, arms, and other body parts exposed while sleeping. However, some people do not show bed bug lesions on their bodies even though bed bugs may have fed on them.

For information, see the Internet Web sites of the United States Environmental Protection Agency and the National Pest Management Association.

- A. Resident(s) understand(s) and agree(s) that bed bugs are an ongoing problem in rental housing. Resident(s) play(s) an important role in ensuring that bed bugs do not infest the Premises. Early detection and reporting of bed bugs are important components required for preventing bed bug infestations. This Addendum defines Resident(s) responsibilities under the Agreement regarding bed bug control.
- B. Resident(s) promise(s) that any and all personal property (e.g. furniture, clothing, bedding) that is brought to the Premises by the Resident(s), guests or invitees has been inspected for bed bugs and does not contain any bed bugs. Resident(s) promise(s) not to bring property that has been infested with bed bugs onto the Premises. Resident(s) agree(s) to continually check and inspect all personal property that is brought into the Premises for bed bugs.
- C. Resident(s) agree(s) to report the possibility of signs of bed bugs immediately in writing to Owner/Agent because bed bugs multiply quickly and can become an infestation affecting Resident(s), their guests and invitees and other Resident(s), guests or invitees in the Property.
- D. Resident(s) agree(s) to cooperate with Owner/Agent's requests regarding bed bug inspection and control efforts. This includes carefully and diligently following all instructions and recommendations regarding inspections, detection and treatment of bed bugs and the movement and removal of personal property as requested by Owner/Agent and any pest control company retained by Owner/Agent. Preparation for the inspection, detection and treatment of bed bugs can be extensive and expensive, and may include items such as special cleaning or washing instructions for bedding, clothing, etc. or disposing of personal property that cannot be disinfected. Resident(s) agrees to comply with the instructions for bed bug preparation, inspection, and treatment if requested by Owner/Agent or pest control company retained by Owner/Agent.

Bed Bug Addendum

- E. Resident(s) understand(s) and agree(s) that he/she is/are responsible for preventing any bed bugs from entering the Premises.
- F. Resident(s) agree(s) to indemnify and hold harmless the Owner/Agent from any actions, claims, losses, damages, and expenses, including, but not limited to attorney's fees that the Owner/Agent may sustain or incur as a result of the negligence of the Resident(s), guests or invitees, in occupying the Premises including failure to take precautions, indemnify, treat or report the possibility or existence of bed bugs.
- G. Resident(s) acknowledge(s) and agree(s) that the Owner/Agent shall not be liable for any loss or damage suffered by Resident(s) and/or guests or invitees resulting from an infestation or treatment of bed bugs.

The undersigned Resident(s) acknowledges(s) having read, understood and accept the foregoing.
By Renter(s)

Date: _____

Signed: 

Name: Luis Soberanis Pacheco

Title: Tenant
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

By Owner(s):

Date: _____

Signed: Kelly Hoover

Name: Kelly Hoover

Title: Agent for Owner

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Carbon Monoxide Detection Device Addendum

Carbon Monoxide is a poisonous gas that often has no odor, no color and is hard to detect. It can be lethal if breathed in, and exposure to it can cause fatigue, nausea, dizziness, loss of consciousness and suffocation.

This Carbon Monoxide Detection Device Addendum ("Addendum") is created in compliance with California Health and Safety Code 17926(a) and is intended by the parties to be incorporated into the rental/lease agreement between the residents and owner (listed below) that governs the tenancy of the resident(s).

This Addendum is made between: **184 13th Street Associates LLC** ("Owner") and **Luis Angel Soberanis Pacheco** ("Resident") for the rental property located at: **184 13 St. APT 114**, (if applicable), **Oakland**, California **94612** ("Premises")

Resident acknowledges as follows:

The Premises has been equipped with Carbon Monoxide Detector(s) located as follows (list locations):

In Unit

2. These Carbon Monoxide Detector(s) (*check one*): ☒ are battery operated ☐ are not battery operated.
3. Resident has been shown where each Carbon Monoxide Detector stated above is located and Owner has explained the operation and maintenance of each Detector to Resident.
4. Resident has inspected and tested said Carbon Monoxide Detector(s) and confirmed that each of the Detector(s) are in good working condition.
5. Resident understands and agrees that as part of Resident's responsibilities under Resident's rental/lease agreement, Resident is responsible for checking the Carbon Monoxide Detector(s) on a regular basis (weekly) to ensure they are working properly. Resident is also responsible for replacing the battery to the Carbon Monoxide Detector(s) when necessary.
6. Resident agrees to notify Owner in writing immediately if Carbon Monoxide Detector(s) is not working properly or becomes inoperable.
7. Resident agrees he/she will not tamper with, destroy, remove, take out batteries from (except to replace), unplug or otherwise de-activate the Carbon Monoxide Detector(s).
8. Resident understands and agrees that Owner may enter the Premises upon a 24 hour notice to Resident to test, maintain, install, and/or repair the Carbon Monoxide Detector(s) pursuant to law.
9. If there are any conflicts between the terms of Resident's current Rental/Lease agreement and this Addendum, this Addendum shall control.

Resident understands and agrees to the terms stated in this Addendum.

By Renter(s)

Date: _____

Signed: 

Name: Luis Soberanis Pacheco

Title: Tenant
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

By Owner(s):

Date: _____

Signed: Kelly Hoover

Name: Kelly Hoover

Title: Agent for Owner

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

CONSTRUCTION ADDENDUM

Tenant understands that construction will be occurring around and adjacent to the Premises (“construction activities”). Said construction activities involve renovations to the existing building containing the Premises. These activities may cause debris, dust, noise, changes in services, and a certain amount of inconvenience and discomfort. No completion dates and times are known or warranted by Mosser Companies (“Owner”). Specifically, certain services will be impacted, such as access to common areas, parking privileges, and use of exterior areas in and around the Premises. No service of tenancy will be permanently severed; however, services will be substantially affected during the construction processes.

Tenant agrees that the construction activities are necessary and performed to maintain and enhance the quality of the building. Tenant agrees that these activities do not constitute a reduction in any promised housing service, and that this disclosure is made at the inception of the tenancy. In addition, the construction activities are deemed to be necessary and are not purely cosmetic or elective.

Tenant should consider this disclosure PRIOR to entering into the tenancy with Owner. This disclosure is made in good faith. Owner’s plans for renovation and construction may be viewed by Tenant at any time, including prior to Tenant signing the Residential Tenancy Agreement. Furthermore, Owner makes no warranty as to how any building improvements, or the construction of any adjacent structures, will be completed. Plans are subject to change at any time and without any notice to Tenant, and the manner of construction is also subject to revision and modification by Owner.

Finally, Tenant may not breach his/her lease on account of any inconvenience incurred as a result of the construction activities. Owner reserves all rights to enforce the lease agreement, and hereby notifies Tenant that no early termination will be allowed as a result of the construction activities.

The foregoing Construction Addendum is an addendum to the Residential Tenancy Agreement and its terms are incorporated therein.

ACCEPTED AND AGREED TO BY:

By Renter(s)

Date: _____

Signed: 

Name: Luis Soberanis Pacheco

Title: Tenant
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

By Owner(s):

Date: _____

Signed: Kelly Hoover

Name: Kelly Hoover

Title: Agent for Owner

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

By Owner(s):

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Crime Free Housing Addendum

Resident(s): Luis Angel Soberanis Pacheco ("Resident")
(And all other occupants in possession)

Lease Premises: 184 13 St. APT 114, Unit: 114, (if applicable)
(Address)

City: Oakland California ZIP: 94612
("Premises") (City) (Zip)

Owner: 184 13th Street Associates LLC ("Owner/Agent")
(Name of Owner/Agent)

Due to a desire to maintain a safe and crime-free lifestyle in Premises, Resident and Owner/Agent agree to incorporate this Crime Free Housing Addendum ("Addendum") into the rental agreement ("Rental Agreement") currently in existence or renewed on this day between Resident and Owner/Agent.

It is already established that Resident shall not commit a substantial violation of the Rental Agreement or materially non-comply with the Rental Agreement. This Crime Free Housing Addendum sets forth a specific list of activities that constitute substantial violations of the Rental Agreement and will be considered a material non-compliance of the Rental Agreement if performed by Resident, any member of Resident's household, Resident's guest(s), or any other individuals associated with the Resident on the Premises during the Rental Agreement term. Resident understands that below is not an all-inclusive list of substantial violations or material non-compliant activities under the Rental Agreement. Resident understands and agrees that any occurrence of any of the activities stated below will constitute grounds for immediate termination of Resident's Rental Agreement and eviction of Resident and all other occupants of the Premises.

Any of the following acts on or near the Premises will be considered a substantial violation and a material non-compliance of the Rental Agreement and will subject Resident to immediate termination of the Rental Agreement and eviction pursuant to California Law.

- (1) Resident shall not partake in criminal activity on or near the Premises. Criminal activity includes, but is not limited to, any nuisance activity as defined in Civil Code sections 3479 and 3480.
- (2) Criminal activity also includes any illegal drug-related activity, any illegal manufacture, sale, distribution, use, or possession of any illegal or controlled substance as defined in 21 U.S.C. 802.
- (3) Criminal activities also include any illegal activity on or near the Premises such as prostitution, assault, illegal possession or use of firearms, stalking, substantial damage to property, illegal gang activity, or any other act on or near the Premises that endangers or threatens the health and safety of another individual or to Owner/Agent.
- (4) Resident shall not engage in any act intended to facilitate any of the above-stated nuisance or criminal activities.
- (5) Resident shall not allow the Premises to be used for or to facilitate any of the above-stated nuisance or criminal activities.
- (6) Resident, any member of the Resident's household, any of Resident's guests or any other person associated with the Resident on the Premises shall not violate any civil law, ordinance or statute in the use and occupancy of the Premises, commit waste or nuisance, annoy, molest or interfere with any other person while on or near the Premises.



RESIDENT UNDERSTANDS AND AGREES THAT EVEN A SINGLE VIOLATION OF ANY PROVISION OF THIS ADDENDUM MAY BE CONSIDERED A SUBSTANTIAL VIOLATION AND A MATERIAL NON-COMPLIANCE OF THE RENTAL AGREEMENT AND MAY CONSTITUTE GROUNDS FOR IMMEDIATE TERMINATION OF THE RENTAL AGREEMENT AND EVICTION. Unless otherwise provided by law, proof of a violation of this Addendum shall not require a criminal conviction, but shall be proven by a preponderance of the evidence. If there is a conflict between the provisions of this Addendum and a provision of the Rental Agreement, the provisions of this Addendum will govern.

By Renter(s)

Date: _____

Signed: 

Name: Luis Soberanis Pacheco

Title: Tenant
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

By Owner(s):

Date: _____

Signed: Kelly Hoover

Name: Kelly Hoover

Title: Agent for Owner

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)



Insurance Information Addendum

Apartment living has many advantages; unfortunately, it also carries some of the same risks faced by homeowners.

The following possible costly misfortunes would probably be your legal responsibility as an apartment Resident:

- ▣ Your babysitter injures herself in your apartment.
- ▣ You have a defective electrical extension cord. It starts a fire that causes considerable damage to the building and all your personal possessions.
- ▣ A friend helps you move your refrigerator so you can clean behind it, and he hurts his back.
- ▣ Your locked car is broken into, and a camera is stolen.
- ▣ Your child hits a playmate with a brick on the apartment playground. Stitches are required, but the playmate's parents have no medical insurance.
- ▣ A burglar breaks in and steals your valuables.
- ▣ Your child leaves a bicycle or toy at the foot of the stairs. Your neighbor falls over the toy and is severely injured.

Although most of those losses would not have been deliberately or even negligently caused by you, normally you would have to bear the cost, just as you would if you were a homeowner.

Except under limited circumstances, the apartment Owner is in most cases not legally responsible for loss to the Resident's property and his insurance does not cover these losses.

However, Renter's Insurance can be purchased from any general insurance agent to cover fire, theft, liability and certain other perils. The cost averages approximately \$30 per month. This is a low price for peace of mind and for the financial recovery if you have a loss.

Please note that this letter is not an effort by the apartment Owner to change responsibility – that is done by the legislature and the courts. However, we have found that some Residents are unaware of the normal everyday risks they live with and believe that the Owner pays for whatever happens. The purpose of this letter is to help inform you, so that you may better protect yourself if you wish.

By Renter(s)

Date: _____

Signed: 

Name: Luis Soberanis Pacheco

Title: Tenant
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

By Owner(s):

Date: _____

Signed: Kelly Hoover

Name: Kelly Hoover

Title: Agent for Owner

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Disclosure Of Lead-Based Paint and Lead-Based Paint Hazards Addendum (No Known Problem)

Lead Warning Statement

Housing built before 1978 may contain lead-based paint. Lead from paint, paint chips and dust can pose health hazards if not managed or taken care of properly. Lead exposure is especially harmful to young children and pregnant women. Before renting pre-1978 housing, landlords must disclose the presence of known lead-based paint and/or lead-based paint hazards in the dwelling. Residents must also receive a federally approved pamphlet on lead poisoning prevention.

Owner's Disclosure

Owner has no knowledge of lead-based paint and/or lead-based paint hazards in the premises.

Owner has no reports or records pertaining to lead-based paint and/or lead-based paint hazards which show any lead-based paint hazard in the premises.

Renter's Acknowledgement

Resident has received the English version, AND ☐ (if checked) the Spanish version, of the pamphlet "*Protect Your Family from Lead in Your Home.*"

Resident agrees to promptly notify Owner of any deteriorated and/or peeling paint.

Real Estate Agent's Acknowledgement (initial, if agent involved)

_____ Real Estate Agent has informed the Owner of the Owner's obligations under 42 U.S.C. 4852(d), and is aware of his/her responsibility to ensure compliance.



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Certification of Accuracy

The following parties have received the information above and certify, to the best of their knowledge, that the information provided is true and accurate.

Each person signing for the pamphlet "*Protect Your Family from Lead in Your Home*" agrees that he/she will be personally responsible to insure that all persons who are now residing in the unit, who subsequently move into the unit in the future and any guests in the unit are informed about the contents of the pamphlet and are given the opportunity to read the pamphlet for themselves.

By Renter(s)

Date: _____

Signed: _____

Name: Luis Soberanis PachecoTitle: Tenant
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)**By Owner(s)**

Date: _____

Signed: Kelly HooverName: Kelly HooverTitle: Agent for Owner

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

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Instructions for Disclosure Of Lead-Based Paint and Lead-Based Paint Hazards Addendum (No Known Problem)

Use this Form When:

When you have NO knowledge that lead-based paint and/or lead based paint hazard are present on the premises.

The Law

Residential Lead Based Paint Disclosure Program Section 1018 of Title X of the United States Code.

Recognizing that families have a right to know about lead-based paint and potential lead hazards in their homes, Congress directed EPA and HUD to develop disclosure requirements for leases of older housing. These requirements became effective in 1996. EPA has established hazard standards for paint, dust, and soil in most pre-1978 housing and child-occupied facilities.

Filling Out the Form

- Provide Resident with a copy of the "Protect Your Family From Lead in Your Home"
- Real Estate Agent's Acknowledgement – Initial if Agent and have informed Owner of obligations.
- Resident(s) and Owner/Agent sign and date Addendum.
- Make copies. Enough copies for each resident.
- Keep the Original for your file. You may need the original for Court.

Notes:

SOURCE: Questions and Answers on the EPA/HUD Disclosure Rule.

<http://www.epa.gov/lead/pubs/1018qa.pdf>

EPA and HUD Real Estate Notification and Disclosure Rule

Questions and Answers

The Rule

What is the purpose of this rule and who is affected?

To protect the public from exposure to lead from paint, dust, and soil, Congress passed the Residential Lead-Based Paint Hazard Reduction Act of 1992, also known as Title X. Section 1018 of this law directed HUD and EPA to require disclosure of information on lead-based paint and lead-based paint hazards before the sale or lease of most housing built before 1978. The rule would ensure that purchasers and renters of housing built before 1978 receive the information necessary to protect themselves and their families from lead-based paint hazards.

When does the rule take effect?

The rule's effective date depends on the number of housing units owned.

- ☐ For owners of more than 4 dwelling units, the effective date is September 6, 1996.
- ☐ For owners of 4 or fewer dwelling units, the effective date is December 6, 1996.

Affected Housing

What type of housing is affected by this rule?

This rule applies to all housing defined as target housing, which includes most private housing, public housing, housing receiving federal assistance, and federally owned housing built before 1978.

What type of housing is not affected by this rule?

- ☐ Housing that is not affected by this rule includes:
- ☐ 0-bedroom dwellings, such as lofts, efficiencies, and studios.
- ☐ Leases of dwelling units of 100 days or fewer, such as vacation homes or short-term rentals.
- ☐ Designated housing for the elderly and the handicapped unless children reside or are expected to reside there.
- ☐ Rental housing that has been inspected by a certified inspector and is found to be free of lead-based paint.



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How does this rule apply to housing common areas such as stairwells, lobbies, and laundry rooms?

Common areas are those areas in multifamily housing structures that are used or are accessible to all occupants. The rule requires that sellers and lessors disclose available lead information about common areas so that families can be informed about preventive actions.

Why doesn't this rule affect housing built after 1978?

Congress did not extend the law to housing built after 1978 because the Consumer Product Safety Commission banned the use of lead-based paint in housing in 1978.

Is my home unsafe if it contains lead-based paint?

Approximately three-quarters of the nation's housing built before 1978 contains some lead-based paint. This paint, if properly managed and maintained, poses little risk. If allowed to deteriorate, lead from paint can threaten the health of occupants, especially children under 6 years old. If families and building owners are aware of the presence of lead-based paint and the proper actions to take, most lead-based paint hazards can be managed. The EPA pamphlet *Protect Your Family From Lead in Your Home* provides important information for families and home owners to help them identify when lead-based paint is likely to be a hazard and how to get their home checked.

Seller & Lessor Responsibilities

What if I'm selling target housing?

Property owners who sell target housing must:

- ▢ Disclose all known lead-based paint and lead-based paint hazards in the housing and any available reports on lead in the housing.
- ▢ Give buyers the EPA pamphlet *Protect Your Family from Lead in Your Home*.
- ▢ Include certain warning language in the contract as well as signed statements from all parties verifying that all requirements were completed.
- ▢ Retain signed acknowledgments for 3 years, as proof of compliance.
- ▢ Give buyers a 10-day opportunity to test the housing for lead.

What if I'm renting target housing?

Property owners who rent out target housing must:

- ▢ Disclose all known lead-based paint and lead-based paint hazards in the home and any available reports on lead in the housing.
- ▢ Give renters the EPA pamphlet *Protect Your Family From Lead in Your Home*.
- ▢ Include certain warning language in the lease as well as signed statements from all parties verifying that all requirements were completed.
- ▢ Retain signed acknowledgments for 3 years, as proof of compliance.

Am I required to give the EPA pamphlet *Protect Your Family From Lead in Your Home* to existing tenants?

No, but when tenants renew their leases, you must give them the pamphlet and any available reports. In other words, you must give them the same information that you are required to provide new tenants.

What if the buyers/renters don't speak English?

In cases where the buyer or renter signed a purchase or lease agreement in a language other than English, the rule requires that the disclosure language be provided in the alternate language. The EPA pamphlet *Protect Your Family From Lead in Your Home* is printed in English and Spanish and will be made available to the public. EPA and HUD are considering publishing the pamphlet in other languages as well.

Must I check my house for lead prior to sale?

No. The rule does not require that a seller conduct or finance an inspection or risk assessment. The seller, however, is required to provide the buyer a 10-day period to test for lead-based paint or lead-based paint hazards.

Is the seller required to remove any lead-based paint that is discovered during an inspection?

No. Nothing in the rule requires a building owner to remove lead-based paint or lead-based paint hazards discovered during an inspection or risk assessment. In addition, the rule does not prevent the two parties from negotiating hazard reduction activities as a contingency of the purchase and sale of the housing.



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What if I know there is lead-based paint in my home?

If you know there is lead-based paint in your home, you are required to disclose this information to the buyer or renter along with any other available reports on lead.

What if the lessor knows that there is no lead-based paint in my rental housing?

If your rental housing has been found to be free of lead-based paint by a certified inspector, this rule does not apply. However, landlords seeking an exclusion to this rule must use state certified inspectors. If your state does not have a certification program, you may use a certified inspector from another state. In addition, EPA is developing certification requirements for individuals and firms conducting lead-based paint inspections, risk assessments, and abatements.

Agent Responsibilities**What are my responsibilities as an agent?**

Agents must ensure that:

- ▯ Sellers and landlords are made aware of their obligations under this rule.
- ▯ Sellers and landlords disclose the proper information to lessors, buyers, and tenants.
- ▯ Sellers give purchasers the opportunity to conduct an inspection.
- ▯ Lease and sales contracts contain the appropriate notification and disclosure language and proper signatures.

What is the responsibility of an agent if the seller or landlord fails to comply with this rule?

The agent is responsible for informing the seller or lessor of his or her obligations under this rule. In addition, the agent is responsible if the seller or lessor fails to comply. However, an agent is not responsible for information withheld by the seller or lessor.

Purchaser & Renter Rights**As a purchaser, am I required to conduct and finance an inspection?**

No. The rule simply ensures that you have the opportunity to test for lead before purchase.

Can the inspection/risk assessment period be waived?

Yes. The inspection or risk assessment period can be lengthened, shortened, or waived by mutual written consent between the purchaser and the seller.

If I am renting, do I have the same opportunity to test for lead?

Under the law, the 10-day inspection period is limited to sales transactions, but nothing prevents the renter from negotiating with the lessor to allow time for an inspection before rental.

Where can I find a qualified professional to conduct an inspection?

State agencies can provide helpful information for locating qualified professionals in your area. The EPA pamphlet *Protect Your Family From Lead in Your Home* provides the phone numbers of these state agencies. It is important to verify the qualifications of individuals and firms before hiring them.

Must inspectors be certified?

Some cities and states have their own rules concerning inspector certification. These requirements, which may be administered at the state or federal level, may not be in place for several years. Once these requirements are in place, professionals who offer to perform lead-based paint inspections must be certified. The certification requirements that EPA is developing will ensure that inspectors engaged in lead-based paint activities have completed an EPA-certified training program or an EPA-approved state program. Meanwhile, EPA and HUD recommend that people inspect the qualifications and training of individuals and firms before hiring them to conduct risk assessments, inspections, or abatements.

Liability**Does this rule increase my liability for future lead poisoning on my property?**

In some cases, disclosure may actually reduce the owner's liability since occupants may be able to prevent exposure from the beginning. Under this rule, however, sellers, landlords, or agents who fail to provide the required notices and information are liable for triple the amount of damages.



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Are mortgage lenders liable under these rules if the seller or lessor fails to disclose?

Under the disclosure regulation, the rule does not identify mortgage lenders as liable parties. This rule does not affect other state and federal provisions regarding the obligations and responsibilities of lenders.

What if a seller or lessor fails to comply with these regulations?

A seller, lessor, or agent who fails to give the proper information can be sued for triple the amount of damages. In addition, they may be subject to civil and criminal penalties. Ensuring that disclosure information is given to home buyers and tenants helps all parties avoid misunderstandings before, during, and after sales and leasing agreements.

Renovation, Repair and Painting (RRP) <http://www.epa.gov/lead/pubs/renovation.htm>

Information for Property Owners of Rental Housing, Child-Occupied Facilities

Property owners who renovate, repair, or prepare surfaces for painting in pre-1978 rental housing or space rented by child-care facilities must, before beginning work, provide tenants with a copy of EPA's lead hazard information pamphlet *Renovate Right: Important Lead Hazard Information for Families, Child Care Providers, and Schools*. Owners of these rental properties must document compliance with this requirement; EPA's sample pre-renovation disclosure form may be used for this purpose.

After April 22, 2010, property owners who perform these projects in pre-1978 rental housing or space rented by child-care facilities must be certified and must follow the lead-safe work practices required by EPA's Renovation, Repair and Remodeling rule. To become certified, property owners must submit an application for firm certification and fee payment to EPA. EPA began processing applications on October 22, 2009. The Agency has up to 90 days after receiving a complete request for certification to approve or disapprove the application.

Property owners who perform renovation, repairs, and painting jobs in rental property should also:

- ▯ Take training to learn how to perform lead-safe work practices.
- ▯ Learn the lead laws that apply to you regarding certification and lead-safe work practices beginning April 22, 2010.
- ▯ Keep records to demonstrate that you and your workers have been trained in lead-safe work practices and that you follow lead-safe work practices on the job. To make recordkeeping easier, you may use the sample recordkeeping checklist that EPA has developed to help contractors comply with the renovation recordkeeping requirements that took effect April 22, 2010.
- ▯ Read about how to comply with EPA's rule in the *EPA Small Entity Compliance Guide to Renovate Right*.
- ▯ Read about how to use lead-safe work practices in EPA's *Steps to Lead Safe Renovation, Repair and Painting*.

Caution: This form has been prepared by the East Bay Rental Housing Association. As with all legal notices consult with an attorney to determine whether this form is appropriate for your specific needs. Moreover consult an attorney if you require assistance in completing the form or changes to the form are necessary in your particular situation.



Form provided by the East Bay Rental Housing Association®

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Form Disclosure of Lead-Based Paint – No Known Problem© (10/11)

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Mold and Maintenance of Premises

Addendum "H" to Residential Rental Agreement Dated: **June 30, 2022**

Mold is a microscopic organism or fungi that can grow in damp conditions in the interior of a building.

As of the Commencement Date or, if applicable, the Extended Commencement Date, the Premises is free of mildew and mold.

Resident(s) is/are required to promptly notify Owner/Agent as soon as Resident(s) become(s) aware of any:

- ▯ Leaks in plumbing fixtures;
- ▯ Leaky windows;
- ▯ Any water intrusions into the Premises from whatever source; or
- ▯ Mildew or mold in the Premises.

Owner/Agent is not required to repair dilapidations caused by mold at the Premises if Owner/Agent has not received notice about the condition or if the condition is caused by the failure of Resident(s) to maintain the Premises as required by California Civil Code §1941.2.

Resident(s) agree(s) to:

- ▯ Keep the Premises clean and sanitary;
- ▯ Use and operate gas, electrical and plumbing fixtures properly. [Examples of improper use include, but are not limited to, overloading electrical circuits, flushing large foreign objects down the toilet and allowing any gas, electrical or plumbing fixtures to become filthy];
- ▯ Promptly dispose of trash and garbage in a clean and sanitary manner;
- ▯ Not destroy, damage or deface the Premises or allow anyone else to do so;
- ▯ Avoid conditions that could lead to a mildew or mold condition including, for example, using bathroom fans or opening bathroom windows to avoid humidity and dampness in a bathroom, not place furniture or belongings against walls, and immediately clean mildew if and when it appears.

The undersigned Resident(s) acknowledges(s) having read and understood the foregoing.

By Renter(s)

Date:	_____	Date:	_____
Signed:	<u></u>	Signed:	_____
Name:	<u>Luis Soberanis Pacheco</u>	Name:	_____
Title:	<u>Tenant</u> (If Any)	Title:	_____ (If Any)
Date:	_____	Date:	_____
Signed:	_____	Signed:	_____
Name:	_____	Name:	_____
Title:	_____ (If Any)	Title:	_____ (If Any)
Date:	_____	Date:	_____
Signed:	_____	Signed:	_____
Name:	_____	Name:	_____
Title:	_____ (If Any)	Title:	_____ (If Any)

By Owner(s):

Date:	_____	Date:	_____
Signed:	<u>Kelly Hoover</u>	Signed:	_____
Name:	<u>Kelly Hoover</u>	Name:	_____
Title:	<u>Agent for Owner</u>	Title:	_____ (If Any)

Non-Smoking Addendum

The Resident(s): **Luis Angel Soberanis Pacheco** for the premises located at **184 13 St. APT 114**, (if applicable), **Oakland**, California **94612** ("Premises")

And Property Owner/Agent: **184 13th Street Associates LLC** agree as follows:

Due to a desire to maintain a healthy environment in and around the Premises and Property, as well as limit the increased maintenance repairs, and cleaning costs caused by the use of any tobacco product and marijuana product, Resident(s), Guest(s), Invitee(s), Occupant(s) in possession and Owner/Agent agree to incorporate this Non-Smoking Addendum ("Addendum") into the Rental Agreement ("Rental Agreement") currently in existence renewed or entered into on **June 30, 2022** between Resident(s) and Owner/Agent.

Non-Smoking Addendum

DEFINITION OF SMOKING: Smoking for the purposes of this Addendum, includes: The inhalation of or exhalation of any tobacco or marijuana product as defined below.

DEFINITION OF TOBACCO AND MARIJUANA PRODUCT: A "tobacco product" or "marijuana product" means any of the following: A) A product containing, made, or derived from tobacco, nicotine or marijuana that is intended for human consumption, whether smoked, heated, chewed, absorbed, dissolved, inhaled, snorted, sniffed, or ingested by any other means, including but not limited to cigarettes, cigars, little cigars, chewing tobacco, pipe tobacco, and snuff. B) An electronic device that delivers tobacco, nicotine, marijuana or other vaporized liquids to a person inhaling from the device, including, but not limited to, electronic cigarette, cigar, pipe, or hookah. C) Any component, part, or accessory of a tobacco product, whether or not sold separately.

LIMITATIONS ON SMOKING: Smoking is limited or prohibited per this Addendum in the Premises or on the Property as follows (Check the one that applies):

☒ **[X]** Smoking is prohibited everywhere on the Property in which the Premises is located, including, but not limited to, all common areas, elevators, offices, stairwells, all residential units, patios, porches, entryways, hallways, sidewalks and adjoining grounds of the Property.

☐ **[_]** Smoking is prohibited in all areas of the Property except the following designated areas of the Property where smoking is allowed:

RESPONSIBILITY OF RESIDENT: Resident(s) and Occupant(s) in possession acknowledge and agree to comply with the rules regarding smoking in this Non-Smoking Addendum and agree that Resident(s) or Occupant(s) guest(s) or invitee(s), including service personnel, will comply with the terms of this Addendum. Resident(s), Occupant(s), guest(s) or invitee(s) understand that he/she is responsible for ensuring compliance of these non-smoking requirements by Resident(s) Occupant(s), Guest(s) or Invitee(s) and understand that Owner/Agent's ability to enforce the terms and conditions of this Addendum, if any, is dependent on Resident(s), Occupant(s), Guest(s) and Invitee(s) compliance and assistance.

Non-Smoking Addendum

NOTIFICATION OF VIOLATIONS: Resident(s) and Occupants in possession agree to notify Owner/Agent in writing, signed and dated if he/she witnesses any violation of this Non-Smoking Addendum by any other, Resident, Guest or Invitee on the Property.

SIGNS: (fill-out if applicable) Signs regarding the no-smoking policy stated in this Addendum are posted in the complex as follows:

Common Areas

DISCLAIMER/NON-GUARANTEE OF SMOKE-FREE ENVIRONMENT: Owner/Agent, Resident(s) and Occupants in possession agree that the no-smoking requirements stated in this Non-Smoking Addendum is **not** intended to be and will **not** be established as any guarantee by Owner/Agent to Resident(s), guests or invitees on Property of any air quality standard or health risks. The adoption of this no-smoking policy and any enforcement hereof shall not in any way change or increase Owner/Agent's responsibilities under landlord tenant law, including but not limited to, any increase in liability regarding a warranty of habitability, quiet enjoyment or any other duty of care that may or may not be owed to Resident(s), guests, invitees or individuals on the Property. Owner/Agent expressly denies/disclaims any implied or expressed warranties that any area of the Property, complex or surrounding areas will have improved air quality, increased health benefits or decreased second hand smoke risks. There are no guarantees of reduction of second hand smoke or other health benefits from the enforcement or application of the terms or conditions of this Addendum.

ENFORCEMENT: Owner/Agent may enforce the no-smoking requirements stated in this Addendum when Owner/Agent has been notified in writing of a violation of the terms and conditions of this Addendum, which shall be documented, signed and dated by the Resident(s).

EFFECT OF BREACH OF NO-SMOKING RULE: If Resident(s) or occupants in possession breach the terms and conditions contained in this Addendum, Owner/Agent has the right to issue notice of termination of tenancy on these grounds alone. A violation of this no smoking policy and this Addendum will be considered a substantial and material breach of Resident(s) lease or Rental Agreement. In addition, Resident(s) will be responsible for all costs associated with the removal, repair, maintenance and replacement of any damage relating including smoke odor or residue.

EXISTING RESIDENTS ON A LEASE: Resident(s) and occupants in possession acknowledge that some of the current Resident(s) and occupants in possession residing in the Property are still under a prior lease or rental agreement, which will not be immediately required to be affected by the terms of this Addendum. As these current Resident(s) and occupant(s) in possession move out, as their leases are renewed, or leases are amended, this no smoking policy may apply to them.

Non-Smoking Addendum

By signing below, Resident(s) acknowledges having read, understood, and agrees that it is a material breach of the Rental Agreement to violate any of the above-stated requirements regarding smoking while on the Property.

By Renter(s)

Date: _____

Signed: 

Name: Luis Soberanis Pacheco

Title: Tenant
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

By Owner(s):

Date: _____

Signed: Kelly Hoover

Name: Kelly Hoover

Title: Agent for Owner

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Notice of Periodic Pest Control Addendum

Addendum "F" to Residential Rental Agreement Dated: **June 30, 2022**

- (a) Existing law requires licensed pest control operators to provide to Resident(s) written notification that includes the pest to be targeted, the pesticide to be used, the frequency of its use, and a health and safety statement prior to a pesticide application. This Addendum notifies Resident(s) that a licensed pest control company has or has not entered into a periodic pest control agreement and therefore will or will not provide a periodic pest control disclosure statement as required by state law.
- (b) Existing law permits Property Owners or Agents to apply commercially available pesticides without using the services of a licensed pest control operator. This Addendum notifies Resident(s) that Property Owner or Agent will or will not apply commercially available pesticides to the Premises or Property as herein disclosed and required by state law.
- (c) This addendum shall also constitute written notice to Resident(s): 1) if a Property Owner/Agent: will apply a commercially available **pesticide inside the Premises**; 2) the pest to be controlled is known at the time of execution of this addendum and; 3) the following is disclosed to the Resident(s):
- (d) The following terms have the following meanings:
- (1) "Adjacent dwelling unit" means a dwelling unit that is directly beside, above, or below a particular dwelling unit.
 - (2) "Agent" means an individual, organization, or other entity that has entered into an agreement with a Property Owner to act on his or her behalf in relation to the management of a Residential rental property.
 - (3) "Broadcast application" means spreading pesticide over an area greater than two square feet.
 - (4) "Electronic delivery" means delivery of a document by electronic means to the electronic address at or through which a Resident(s), Property Owner, or agent has authorized electronic delivery.
 - (5) "Property Owner" means an owner of residential rental property.
 - (6) "Pest" means a living organism that causes damage to property or economic loss, or transmits or produces diseases.
 - (7) "Pesticide" means any substance, or mixture of substances, that is intended to be used for controlling, destroying, repelling, or mitigating any pest or organism, excluding antimicrobial pesticides as defined by the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. Sec. 136(mm)).
 - (8) "Licensed pest control operator" means anyone licensed by the state to apply pesticides.
- (e) (1) A Property Owner or Agent that applies any pesticide to a dwelling unit without a licensed pest control operator shall provide the Resident(s) of that dwelling unit and, if making broadcast applications, or using total release foggers or aerosol sprays, any Resident in an adjacent dwelling unit that could reasonably be impacted by the pesticide use with written notice that contains the following statements and information using words with common and everyday meaning:
- (A) The pest or pests to be controlled.
 - (B) The name and brand of the pesticide product proposed to be used.
 - (C) State law requires that you be given the following information:

CAUTION – PESTICIDES ARE TOXIC CHEMICALS. The California Department of Pesticide Regulation and the United States Environmental Protection Agency allow the unlicensed use of certain pesticides based on existing scientific evidence that there are no appreciable risks if proper use conditions are followed or that the risks are outweighed by the benefits. The degree of risk depends upon the degree of exposure, so exposure should be minimized.

If within 24 hours following application of a pesticide, a person experiences symptoms similar to common seasonal illness comparable to influenza, the person should contact a physician, appropriate licensed health care provider, or the California Poison Control System (1-800-222-1222).

For further information, contact any of the following: for Health Questions – Alameda County Health Department (510-267-3212), Contra Costa Health Services (925-957-5400), or your County Health Department, and for Regulatory Information – the Department of Pesticide Regulation (916-324-4100).

Notice of Periodic Pest Control Addendum

Addendum "F" to Residential Rental Agreement Dated: **June 30, 2022**

(D) The approximate date, time, and frequency with which the pesticide will be applied. If known at the time of entering into the Rental Agreement the approximate date, time and frequency will be:

If known at the time of entering into the Residential Rental Agreement, the name and name brand of the pesticide is

The pest or pests to be controlled are:

The schedule to which the pesticide will be routinely applied is:

This notice may be delivered at any time during tenancy without it or application or use of a pesticide affecting the rental value of the Premises.

(E) The notification also is to provide the Resident(s):

"The approximate date, time, and frequency of this pesticide application is subject to change."

(2) At least 24 hours prior to application of the pesticide to the dwelling unit, the Property Owner or Agent shall provide the notice to the Resident(s) of the dwelling unit, as well as any Resident(s) in adjacent units that are required to be notified pursuant to paragraph (1), in at least one of the following ways:

(A) First-class mail.

(B) Personal delivery to the Resident, someone of suitable age and discretion at the premises, or under the usual entry door of the premises.

(C) Electronic delivery, if an electronic mailing address has been provided by the Resident.

(D) Posting a written notice in a conspicuous place at the unit entry in a manner in which a reasonable person would discover the notice.

(3) (A) Upon receipt of written notification, the Resident(s) may agree in writing, or if notification was electronically delivered, the Resident(s) may agree through electronic delivery, to allow the Property Owner or Agent to apply a pesticide immediately or at an agreed upon time.

(B) (i) Prior to receipt of written notification, the Resident(s) and the Property Owner or Agent may agree orally to an immediate pesticide application if a Resident requests that the pesticide be applied before 24-hour advance notice can be given. The oral agreement shall include the name and brand of the pesticide product proposed to be used.

(ii) With respect to a Resident entering into an oral agreement for immediate pesticide application, the Property Owner or Agent, no later than the time of pesticide application, shall leave the written notice specified in paragraph (1) in a conspicuous place in the dwelling unit, or at the entrance of the unit in a manner in which a reasonable person would discover the notice.

(iii) If any Resident in adjacent dwelling units are also required to be notified pursuant to this subdivision, the Property Owner or Agent shall provide those Resident(s) with this notice as soon as practicable after the oral agreement is made authorizing immediate pesticide application, but in no case later than commencement of application of the pesticide.

(4) (A) The notice shall not be construed to require an association, as defined in Civil Code Section 4080, to provide notice of pesticide use in a separate interest, as defined in Section 4185, within a common interest development, as defined in Section 4100.

(B) Notwithstanding subparagraph (A), an association, as defined in Section 4080, that has taken title to a separate interest, as defined in Section 4185, shall provide notification to Resident(s) as specified in this subdivision.

(c) (1) A Property Owner or Agent that **applies any pesticide to a common area** without a licensed pest control operator, excluding routine pesticide applications described in subdivision (d), shall post written notice in a conspicuous place in the common area in which a pesticide is to be applied that contains the following statements and information using words with common and everyday meaning:

(A) The pest or pests to be controlled.

(B) The name and brand of the pesticide product proposed to be used.

(C) State law requires that you be given the following information:

CAUTION – PESTICIDES ARE TOXIC CHEMICALS. The California Department of Pesticide Regulation and the United States Environmental Protection Agency allow the unlicensed use of certain pesticides based on existing scientific evidence



Notice of Periodic Pest Control Addendum

Addendum "F" to Residential Rental Agreement Dated: **June 30, 2022**

that there are no appreciable risks if proper use conditions are followed or that the risks are outweighed by the benefits. The degree of risk depends upon the degree of exposure, so exposure should be minimized.

If within 24 hours following application of a pesticide, a person experiences symptoms similar to common seasonal illness comparable to influenza, the person should contact a physician, appropriate licensed health care provider, or the California Poison Control System (1-800-222-1222).

For further information, contact any of the following: for Health Questions – Alameda County Health Department (510-267-3212), Contra Costa Health Services (925-957-5400), or your County Health Department, and for Regulatory Information – the Department of Pesticide Regulation (916-324-4100).

(D) The approximate date, time, and frequency with which the pesticide will be applied.

(2) (A) The notice shall be posted before a pesticide application in a common area and shall remain posted for at least 24 hours after the pesticide is applied.

(B) Property Owners and Agents are not liable for any notice removed from a common area without the knowledge or consent of the Property Owner or agent.

(C) If the pest poses an immediate threat to health and safety, thereby making compliance with notification prior to the pesticide application required in subparagraph (A) unreasonable, a Property Owner or Agent shall post the notification as soon as practicable, but not later than one hour after the pesticide is applied.

(3) If a common area lacks a suitable place to post a notice, then the Property Owner or Agent shall provide the notice to each dwelling unit in at least one of the following ways:

(A) First-class mail.

(B) Personal delivery to the Resident, someone of suitable age and discretion at the premises, or under the usual entry door of the premises.

(C) Electronic delivery, if an electronic mailing address has been provided by the Resident.

(D) Posting a written notice in a conspicuous place at the unit entry in a manner in which a reasonable person would discover the notice.

(4) This subdivision shall not be construed to require any Property Owner or Agent, or an association, as defined in Section 4080, to provide notice of pesticide use in common areas within a common interest development, as defined in Section 4100.

(d) (1) A Property Owner or Agent that routinely **applies pesticide in a common area** on a set schedule without a licensed pest control operator shall provide a Resident in each dwelling unit with written notice that contains the following statements and information using words with common and everyday meaning:

(A) The pest or pests to be controlled.

(B) The name and brand of the pesticide product proposed to be used.

(C) "State law requires that you be given the following information:

CAUTION – PESTICIDES ARE TOXIC CHEMICALS. The California Department of Pesticide Regulation and the United States Environmental Protection Agency allow the unlicensed use of certain pesticides based on existing scientific evidence that there are no appreciable risks if proper use conditions are followed or that the risks are outweighed by the benefits. The degree of risk depends upon the degree of exposure, so exposure should be minimized.

If within 24 hours following application of a pesticide, a person experiences symptoms similar to common seasonal illness comparable to influenza, the person should contact a physician, appropriate licensed health care provider, or the California Poison Control System (1-800-222-1222).

For further information, contact any of the following: for Health Questions – the County Health Department (telephone number) and for Regulatory Information – the Department of Pesticide Regulation (916-324-4100)."

(D) The schedule pursuant to which the pesticide will be routinely applied.

(2) (A) The Property Owner or Agent shall provide the notice to both of the following:

(i) Existing Resident(s) prior to the initial pesticide application.

(ii) Each new Resident prior to entering into a lease agreement.

(B) The Property Owner or Agent shall provide the notice to the resident(s) in at least one of the following ways:

(i) First-class mail.

(ii) Personal delivery to the Resident, someone of suitable age and discretion at the premises, or under the usual entry door of the premises.



Notice of Periodic Pest Control Addendum

Addendum "F" to Residential Rental Agreement Dated: **June 30, 2022**

- (iii) Electronic delivery, if an electronic mailing address has been provided by the Resident.
- (iv) Posting a written notice in a conspicuous place at the unit entry in a manner in which a reasonable person would discover the notice.
- (C) If the pesticide to be used is changed, a Property Owner or Agent shall provide a new notice pursuant to paragraph (1).
- (D) This shall not be construed to require any Property Owner or Agent, or an association, as defined in Section 4080, to provide notice of pesticide use in common areas within a common interest development, as defined in Section 4100.
- (e) Nothing abrogates the responsibility of a registered structural pest control company to abide by the notification requirements of Section 8538 of the Business and Professions Code.
- (f) Nothing authorizes a Property Owner or Agent to enter a Resident's dwelling unit in violation of Civil Code Section 1954.
- (g) If a Resident is provided notice in compliance with Civil Code Section 1954, a Property Owner or Agent is not required to provide additional information than required by that Civil Code Section and the information herein shall be deemed adequate to inform the Resident(s) regarding the application of pesticides.

Notice of Periodic Pest Control Addendum

Addendum "F" to Residential Rental Agreement Dated: **June 30, 2022**

The undersigned Resident(s) acknowledges(s) having read, understood and accept the foregoing.

By Renter(s)

Date: _____

Signed: 

Name: Luis Soberanis Pacheco

Title: Tenant
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

By Owner(s):

Date: _____

Signed: Kelly Hoover

Name: Kelly Hoover

Title: Agent for Owner

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

PROPOSITION 65 WARNING ADDENDUM

This document is an Addendum and is part of the Rental or Lease Agreement, dated **June 30, 2022** between **184 13th Street Associates LLC** (Owner/Agent) and **Luis Angel Soberanis Pacheco** (Resident) for the premises located at **184 13 St. APT 114**, (if applicable), **Oakland, California 94612**.

Landlord: check at least one box in section [A] or one box in each of sections [B] and [C]. See Instructions for more information.

A. Chemicals known to the State of California to cause cancer and birth defects or other reproductive harm.

1 ☒ Lead-based Paint

WARNING: Paint chips and dust from lead-containing paint on this property can expose you to lead, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord or the building manager about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

2 ☒ Plastic and Vinyl Items – Di(2-ethylhexyl)phthalate

WARNING: Plastic and vinyl items, such as flooring, miniblinds, wallpaper, cables and coatings on wires, on this property can expose you to di(2-ethylhexyl)phthalate which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord or the building manager about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

3 ☐ Miniblinds containing Lead

WARNING: Imported vinyl miniblinds manufactured prior to 1997 on this property can expose you to lead, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord or the building manager about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

4 ☐ Wood, Gas and Other Combustion Sources – Benzene and Carbon Monoxide

WARNING: Fireplaces, firepits, grills and barbecues, gas stoves, gas heaters or other “fossil fuel” burning heaters or appliances [attached garages] on this property can expose you to carbon monoxide, which is known to the State of California to cause birth defects or other reproductive harm and to benzene, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord or the building manager about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

5 ☐ Pesticide -Resmethrin

WARNING: Pesticides used on this property can expose you to resmethrin, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord or the building manager about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

6 ☒ Swimming Pools/Spa – Chloroform from Chlorine

WARNING: Chlorine used as a pool or spa disinfectant on this property can expose you to chloroform, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord or the building manager about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

7 ☒ Secondhand Tobacco Smoke

WARNING: Cigarettes and cigars smoked on this property can expose you to tobacco smoke which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord or the building owner about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

B. Chemicals known to the State of California to Cause Birth Defects or other Reproductive Harm

1 ☐ Fungicides containing Myclobutanil

WARNING: Fungicides used on this property can expose you myclobutanil, which is known to the State of California to cause birth defects or other reproductive harm. Talk to your landlord or the building manager about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.



2 ☐ Fungicides containing Triforine

WARNING: Fungicides used on this property can expose you to triforine, which is known to the State of California to cause birth defects or other reproductive harm. Talk to your landlord or the building manager about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

3 ☐ Pesticides containing Arsenic Trioxide

WARNING: Pesticides used on this property can expose you to arsenic trioxide, which is known to the State of California to cause birth defects or other reproductive harm. Talk to your landlord or the building manager about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments. C. Chemicals known to the State of California to Cause Cancer

1 ☒ Building Materials – Formaldehyde

WARNING: Building materials containing urea-formaldehyde resins, such as insulation, pressed wood materials, finishes, or adhesives, on this property can expose you to formaldehyde, which is known to the State of California to cause cancer. Talk to your landlord or the building manager about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

2 ☒ Ceiling Coatings and other Asbestos-Containing Materials

WARNING: Asbestos-containing materials, including some ceiling coatings on this property can, if damaged or disturbed, expose you to asbestos, which is known to the State of California to cause cancer. Talk to your landlord or the building manager about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

3 ☒ Swimming Pools - Bromoform from Bromine

WARNING: Bromine used as a pool or spa disinfectant on this property can expose you to Bromoform, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord or the building manager about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

4 ☐ Herbicides containing Glyphosate

WARNING: Herbicides used on this property can expose you to Glyphosate, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord or the building manager about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

5 ☒ Marijuana Smoke

WARNING: Marijuana cigarettes, joints or bongs used on this property can expose you to marijuana smoke which is known to the State of California to cause cancer. Talk to your landlord or the building owner about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.



The undersigned tenants and occupants (Resident(s)) acknowledge(s) having read and understood the foregoing.

By Renter(s)

Date: _____

Signed:

Name: Luis Soberanis Pacheco

Title: Tenant
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

By Owner(s):

Date: _____

Signed: Kelly Hoover

Name: Kelly Hoover

Title: Agent for Owner
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

NOTICE OF CALIFORNIA STATEWIDE RENT LIMITATIONS (Addendum to Lease/Rental Agreement)

The undersigned acknowledge(s) receiving the following notification:

As required by Civil Code Section 1946.2 and 1947.12:

(Check appropriate box)

[X] Your unit is subject to California statewide rent caps and just cause. The following disclosure is required by law. California law limits the amount your rent can be increased. See Section 1947.12 of the Civil Code for more information. California law also provides that after all the tenants have continuously and lawfully occupied the property for 12 months or more or at least one of the tenants has continuously and lawfully occupied the property for 24 months or more, a landlord must provide a statement of cause in any notice to terminate a tenancy. See Section 1946.2 of the Civil Code for more information.

[] Your unit will become subject to California statewide rent caps and just cause on **N/A**. On that date the following disclosure is required by law. California law limits the amount your rent can be increased. See Section 1947.12 of the Civil Code for more information. California law also provides that after all the tenants have continuously and lawfully occupied the property for 12 months or more or at least one of the tenants has continuously and lawfully occupied the property for 24 months or more, a landlord must provide a statement of cause in any notice to terminate a tenancy. See Section 1946.2 of the Civil Code for more information.

The undersigned residents acknowledge receiving this notification.

By Renter(s)

Date: _____

Signed: 

Name: Luis Soberanis Pacheco

Title: Tenant
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

By Owner(s):

Date: _____

Signed: Kelly Hoover

Name: Kelly Hoover

Title: Agent for Owner

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

SECURITY BOND ADDENDUM

Security **BOND IN LIEU OF STANDARD SECURITY DEPOSIT**. Residents are required to provide Owner with a security deposit; however, Residents acknowledge and agree that Residents have purchased a Security bond from Deposit IQ, LLC (The Security), which has the effect of reducing or eliminating the security deposit.

Bond Coverage from Deposit IQ or The Guarantors	\$11,340.00
Additional Pet Bond Coverage	\$0.00
Total Paid to Security Bond	\$722.00

Additional Refundable Cash Deposit Due to Community	\$0.00
Pet Fee Due to Community	\$0.00

This Security bond is available to Owner for the recovery of any damage or other loss, and the agreement between Residents and the Security company will not be part of this Agreement.

THE MONEY RESIDENTS PAY TO THE Security COMPANY IS NOT A SECURITY DEPOSIT AND IS NOT REFUNDABLE. EVEN IF OWNER MAKES NO CLAIM AGAINST THE Security BOND, RESIDENTS WILL NOT BE ENTITLED TO ANY REFUND OF THE Security BOND PREMIUM AT THE END OF THE TERM OF THIS AGREEMENT.

With the purchase of a Security bond, Residents will have obligations to the Security company that are separate and independent from the duties Residents owe to Owner under this Residential Lease Contract. RESIDENTS WILL NOT BE RELEASED FROM OBLIGATIONS TO OWNER, EXCEPT TO THE EXTENT THAT OWNER RECEIVES PAYMENTS FROM THE Security THAT SATISFY RESIDENTS' OBLIGATIONS. Specifically, if the Security does not pay the total amount of damage or other loss experienced by Owner, Residents will be required to pay Owner for the remaining amount. Residents will then be obligated to pay Security for funds Security paid to owner.

Residents will be liable without limitation for the following charges, if applicable:

Failure to fully perform Residents duties imposed by statute, this Agreement or any Addendum to this Agreement; failure to clean, repair, or restore the Leased Premises and any appliances, furniture, fixtures, equipment and other property supplied by Owner to its condition at the commencement of this tenancy as evidenced by the inspection report, except normal wear and tear; or failure to pay any rent, returned check charges, late charges, utility charges or other charges which may be owed by Residents pursuant to this Agreement.

Frequently Asked Questions:

What happens at the end of my lease term?

After you pay your last month's rent and honor the other conditions of your lease, you simply move out without any further obligations. If you have not fulfilled your commitments under the lease and owe the community additional funds, the Security must pay to reimburse the Property Owner and you (the resident) will be required to reimburse the Security company for damages, loss of rent and related expenses.

If I do owe fees, rent or damage expense, can I pay it directly to the Apartment Community?

Yes. That is the best thing to do. Once the outstanding monies are paid to the Apartment Community, you will have no obligation to the Security

What happens if I owe rent, fees, or cause damage to my apartment when I move-out?

We (the Security) will be obligated to pay your debt (only up to the bond coverage amount) to the Apartment Community and then we will collect a reimbursement for our payment to the Apartment Community from you.

ACKNOWLEDGED:

By Renter(s)

Date: _____

Signed:  _____

Name: Luis Soberanis Pacheco _____

Title: Tenant _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)

By Owner(s):

Date: _____

Signed:  _____

Name: Kelly Hoover _____

Title: Agent for Owner _____

Date: _____

Signed: _____

Name: _____

Title: _____
(If Any)



HOLD FEE

Luis Angel Soberanis Pacheco
184 13 St. APT 114,
Oakland, CA 94612

The hold fee is paid at time of approval and reserves the unit for the applicant upon payment. The fee becomes non-refundable after 72 hours and is due in full to Mosser Companies if the applicant cancels the application. The hold fee is applied to the security deposit and move-in fees due at move-in

Holding Deposit Credit:	\$300.00
PAID at time of application	

Actual Total due at Move-In:	\$634.50
(Total due after applying the Holding Deposit Credit)	



Protect Your Family From Lead in Your Home



United States
Environmental
Protection Agency



United States
Consumer Product
Safety Commission



United States
Department of Housing
and Urban Development

September 2013

Are You Planning to Buy or Rent a Home Built Before 1978?

Did you know that many homes built before 1978 have **lead-based paint**? Lead from paint, chips, and dust can pose serious health hazards.

Read this entire brochure to learn:

- How lead gets into the body
- About health effects of lead
- What you can do to protect your family
- Where to go for more information

Before renting or buying a pre-1978 home or apartment, federal law requires:

- Sellers must disclose known information on lead-based paint or lead-based paint hazards before selling a house.
- Real estate sales contracts must include a specific warning statement about lead-based paint. Buyers have up to 10 days to check for lead.
- Landlords must disclose known information on lead-based paint and lead-based paint hazards before leases take effect. Leases must include a specific warning statement about lead-based paint.

If undertaking renovations, repairs, or painting (RRP) projects in your pre-1978 home or apartment:

- Read EPA's pamphlet, *The Lead-Safe Certified Guide to Renovate Right*, to learn about the lead-safe work practices that contractors are required to follow when working in your home (see page 12).



Simple Steps to Protect Your Family from Lead Hazards

If you think your home has lead-based paint:

- Don't try to remove lead-based paint yourself.
- Always keep painted surfaces in good condition to minimize deterioration.
- Get your home checked for lead hazards. Find a certified inspector or risk assessor at [epa.gov/lead](https://www.epa.gov/lead).
- Talk to your landlord about fixing surfaces with peeling or chipping paint.
- Regularly clean floors, window sills, and other surfaces.
- Take precautions to avoid exposure to lead dust when remodeling.
- When renovating, repairing, or painting, hire only EPA- or state-approved Lead-Safe certified renovation firms.
- Before buying, renting, or renovating your home, have it checked for lead-based paint.
- Consult your health care provider about testing your children for lead. Your pediatrician can check for lead with a simple blood test.
- Wash children's hands, bottles, pacifiers, and toys often.
- Make sure children avoid fatty (or high fat) foods and eat nutritious meals high in iron and calcium.
- Remove shoes or wipe soil off shoes before entering your house.

Lead Gets into the Body in Many Ways

Adults and children can get lead into their bodies if they:

- Breathe in lead dust (especially during activities such as renovations, repairs, or painting that disturb painted surfaces).
- Swallow lead dust that has settled on food, food preparation surfaces, and other places.
- Eat paint chips or soil that contains lead.

Lead is especially dangerous to children under the age of 6.

- At this age, children's brains and nervous systems are more sensitive to the damaging effects of lead.
- Children's growing bodies absorb more lead.
- Babies and young children often put their hands and other objects in their mouths. These objects can have lead dust on them.



Women of childbearing age should know that lead is dangerous to a developing fetus.

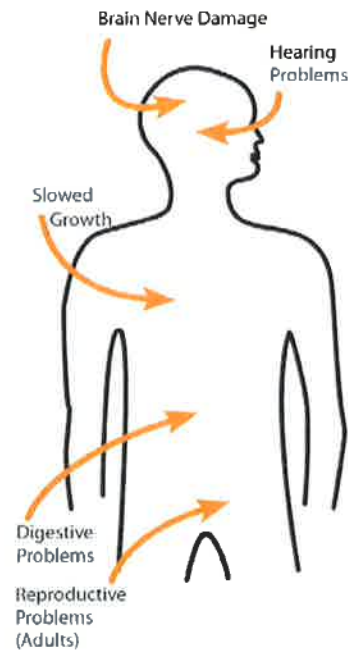
- Women with a high lead level in their system before or during pregnancy risk exposing the fetus to lead through the placenta during fetal development.

Health Effects of Lead

Lead affects the body in many ways. It is important to know that even exposure to low levels of lead can severely harm children.

In children, exposure to lead can cause:

- Nervous system and kidney damage
- Learning disabilities, attention deficit disorder, and decreased intelligence
- Speech, language, and behavior problems
- Poor muscle coordination
- Decreased muscle and bone growth
- Hearing damage



While low-lead exposure is most common, exposure to high amounts of lead can have devastating effects on children, including seizures, unconsciousness, and, in some cases, death.

Although children are especially susceptible to lead exposure, lead can be dangerous for adults, too.

In adults, exposure to lead can cause:

- Harm to a developing fetus
- Increased chance of high blood pressure during pregnancy
- Fertility problems (in men and women)
- High blood pressure
- Digestive problems
- Nerve disorders
- Memory and concentration problems
- Muscle and joint pain

Check Your Family for Lead

Get your children and home tested if you think your home has lead.

Children's blood lead levels tend to increase rapidly from 6 to 12 months of age, and tend to peak at 18 to 24 months of age.

Consult your doctor for advice on testing your children. A simple blood test can detect lead. Blood lead tests are usually recommended for:

- Children at ages 1 and 2
- Children or other family members who have been exposed to high levels of lead
- Children who should be tested under your state or local health screening plan

Your doctor can explain what the test results mean and if more testing will be needed.

Where Lead-Based Paint Is Found

In general, the older your home or childcare facility, the more likely it has lead-based paint.¹

Many homes, including private, federally-assisted, federally-owned housing, and childcare facilities built before 1978 have lead-based paint. In 1978, the federal government banned consumer uses of lead-containing paint.²

Learn how to determine if paint is lead-based paint on page 7.

Lead can be found:

- In homes and childcare facilities in the city, country, or suburbs,
- In private and public single-family homes and apartments,
- On surfaces inside and outside of the house, and
- In soil around a home. (Soil can pick up lead from exterior paint or other sources, such as past use of leaded gas in cars.)

Learn more about where lead is found at [epa.gov/lead](https://www.epa.gov/lead).

¹ "Lead-based paint" is currently defined by the federal government as paint with lead levels greater than or equal to 1.0 milligram per square centimeter (mg/cm), or more than 0.5% by weight.

² "Lead-containing paint" is currently defined by the federal government as lead in new dried paint in excess of 90 parts per million (ppm) by weight.

Identifying Lead-Based Paint and Lead-Based Paint Hazards

Deteriorating lead-based paint (peeling, chipping, chalking, cracking, or damaged paint) is a hazard and needs immediate attention. **Lead-based paint** may also be a hazard when found on surfaces that children can chew or that get a lot of wear and tear, such as:

- On windows and window sills
- Doors and door frames
- Stairs, railings, banisters, and porches

Lead-based paint is usually not a hazard if it is in good condition and if it is not on an impact or friction surface like a window.

Lead dust can form when lead-based paint is scraped, sanded, or heated. Lead dust also forms when painted surfaces containing lead bump or rub together. Lead paint chips and dust can get on surfaces and objects that people touch. Settled lead dust can reenter the air when the home is vacuumed or swept, or when people walk through it. EPA currently defines the following levels of lead in dust as hazardous:

- 40 micrograms per square foot ($\mu\text{g}/\text{ft}^2$) and higher for floors, including carpeted floors
- 250 $\mu\text{g}/\text{ft}^2$ and higher for interior window sills

Lead in soil can be a hazard when children play in bare soil or when people bring soil into the house on their shoes. EPA currently defines the following levels of lead in soil as hazardous:

- 400 parts per million (ppm) and higher in play areas of bare soil
- 1,200 ppm (average) and higher in bare soil in the remainder of the yard

Remember, lead from paint chips—which you can see—and lead dust—which you may not be able to see—both can be hazards.

The only way to find out if paint, dust, or soil lead hazards exist is to test for them. The next page describes how to do this.

Checking Your Home for Lead

You can get your home tested for lead in several different ways:

- A lead-based paint **inspection** tells you if your home has lead-based paint and where it is located. It won't tell you whether your home currently has lead hazards. A trained and certified testing professional, called a lead-based paint inspector, will conduct a paint inspection using methods, such as:
 - Portable x-ray fluorescence (XRF) machine
 - Lab tests of paint samples
- A **risk assessment** tells you if your home currently has any lead hazards from lead in paint, dust, or soil. It also tells you what actions to take to address any hazards. A trained and certified testing professional, called a risk assessor, will:
 - Sample paint that is deteriorated on doors, windows, floors, stairs, and walls
 - Sample dust near painted surfaces and sample bare soil in the yard
 - Get lab tests of paint, dust, and soil samples
- A combination inspection and risk assessment tells you if your home has any lead-based paint and if your home has any lead hazards, and where both are located.



Be sure to read the report provided to you after your inspection or risk assessment is completed, and ask questions about anything you do not understand.

Checking Your Home for Lead, continued

In preparing for renovation, repair, or painting work in a pre-1978 home, Lead-Safe Certified renovators (see page 12) may:

- Take paint chip samples to determine if lead-based paint is present in the area planned for renovation and send them to an EPA-recognized lead lab for analysis. In housing receiving federal assistance, the person collecting these samples must be a certified lead-based paint inspector or risk assessor
- Use EPA-recognized tests kits to determine if lead-based paint is absent (but not in housing receiving federal assistance)
- Presume that lead-based paint is present and use lead-safe work practices

There are state and federal programs in place to ensure that testing is done safely, reliably, and effectively. Contact your state or local agency for more information, visit epa.gov/lead, or call **1-800-424-LEAD (5323)** for a list of contacts in your area.³

³ Hearing- or speech-challenged individuals may access this number through TTY by calling the Federal Relay Service at 1-800-877-8399.

What You Can Do Now to Protect Your Family

If you suspect that your house has lead-based paint hazards, you can take some immediate steps to reduce your family's risk:

- If you rent, notify your landlord of peeling or chipping paint.
- Keep painted surfaces clean and free of dust. Clean floors, window frames, window sills, and other surfaces weekly. Use a mop or sponge with warm water and a general all-purpose cleaner. (Remember: never mix ammonia and bleach products together because they can form a dangerous gas.)
- Carefully clean up paint chips immediately without creating dust.
- Thoroughly rinse sponges and mop heads often during cleaning of dirty or dusty areas, and again afterward.
- Wash your hands and your children's hands often, especially before they eat and before nap time and bed time.
- Keep play areas clean. Wash bottles, pacifiers, toys, and stuffed animals regularly.
- Keep children from chewing window sills or other painted surfaces, or eating soil.
- When renovating, repairing, or painting, hire only EPA- or state-approved Lead-Safe Certified renovation firms (see page 12).
- Clean or remove shoes before entering your home to avoid tracking in lead from soil.
- Make sure children avoid fatty (or high fat) foods and eat nutritious meals high in iron and calcium. Children with good diets absorb less lead.

Reducing Lead Hazards

Disturbing lead-based paint or removing lead improperly can increase the hazard to your family by spreading even more lead dust around the house.

- In addition to day-to-day cleaning and good nutrition, you can **temporarily** reduce lead-based paint hazards by taking actions, such as repairing damaged painted surfaces and planting grass to cover lead-contaminated soil. These actions are not permanent solutions and will need ongoing attention.
- You can minimize exposure to lead when renovating, repairing, or painting by hiring an EPA- or state-certified renovator who is trained in the use of lead-safe work practices. If you are a do-it-yourselfer, learn how to use lead-safe work practices in your home.
- To remove lead hazards permanently, you should hire a certified lead abatement contractor. Abatement (or permanent hazard elimination) methods include removing, sealing, or enclosing lead-based paint with special materials. Just painting over the hazard with regular paint is not permanent control.



Always use a certified contractor who is trained to address lead hazards safely.

- Hire a Lead-Safe Certified firm (see page 12) to perform renovation, repair, or painting (RRP) projects that disturb painted surfaces.
- To correct lead hazards permanently, hire a certified lead abatement professional. This will ensure your contractor knows how to work safely and has the proper equipment to clean up thoroughly.

Certified contractors will employ qualified workers and follow strict safety rules as set by their state or by the federal government.

Reducing Lead Hazards, continued

If your home has had lead abatement work done or if the housing is receiving federal assistance, once the work is completed, dust cleanup activities must be conducted until clearance testing indicates that lead dust levels are below the following levels:

- 40 micrograms per square foot ($\mu\text{g}/\text{ft}^2$) for floors, including carpeted floors
- 250 $\mu\text{g}/\text{ft}^2$ for interior windows sills
- 400 $\mu\text{g}/\text{ft}^2$ for window troughs

For help in locating certified lead abatement professionals in your area, call your state or local agency (see pages 14 and 15), or visit epa.gov/lead, or call 1-800-424-LEAD.

Renovating, Remodeling, or Repairing (RRP) a Home with Lead-Based Paint

If you hire a contractor to conduct renovation, repair, or painting (RRP) projects in your pre-1978 home or childcare facility (such as pre-school and kindergarten), your contractor must:

- Be a Lead-Safe Certified firm approved by EPA or an EPA-authorized state program
- Use qualified trained individuals (Lead-Safe Certified renovators) who follow specific lead-safe work practices to prevent lead contamination
- Provide a copy of EPA's lead hazard information document, *The Lead-Safe Certified Guide to Renovate Right*



RRP contractors working in pre-1978 homes and childcare facilities must follow lead-safe work practices that:

- **Contain the work area.** The area must be contained so that dust and debris do not escape from the work area. Warning signs must be put up, and plastic or other impermeable material and tape must be used.
- **Avoid renovation methods that generate large amounts of lead-contaminated dust.** Some methods generate so much lead-contaminated dust that their use is prohibited. They are:
 - Open-flame burning or torching
 - Sanding, grinding, planing, needle gunning, or blasting with power tools and equipment not equipped with a shroud and HEPA vacuum attachment and
 - Using a heat gun at temperatures greater than 1100°F
- **Clean up thoroughly.** The work area should be cleaned up daily. When all the work is done, the area must be cleaned up using special cleaning methods.
- **Dispose of waste properly.** Collect and seal waste in a heavy duty bag or sheeting. When transported, ensure that waste is contained to prevent release of dust and debris.

To learn more about EPA's requirements for RRP projects visit epa.gov/getleadsafe, or read *The Lead-Safe Certified Guide to Renovate Right*.

Other Sources of Lead

While paint, dust, and soil are the most common sources of lead, other lead sources also exist:

- **Drinking water.** Your home might have plumbing with lead or lead solder. You cannot see, smell, or taste lead, and boiling your water will not get rid of lead. If you think your plumbing might contain lead:
 - Use only cold water for drinking and cooking.
 - Run water for 15 to 30 seconds before drinking it, especially if you have not used your water for a few hours.

Call your local health department or water supplier to find out about testing your water, or visit [epa.gov/lead](https://www.epa.gov/lead) for EPA's lead in drinking water information.

- **Lead smelters** or other industries that release lead into the air.
- **Your job.** If you work with lead, you could bring it home on your body or clothes. Shower and change clothes before coming home. Launder your work clothes separately from the rest of your family's clothes.
- **Hobbies** that use lead, such as making pottery or stained glass, or refinishing furniture. Call your local health department for information about hobbies that may use lead.
- Old **toys** and **furniture** may have been painted with lead-containing paint. Older toys and other children's products may have parts that contain lead.⁴
- Food and liquids cooked or stored in **lead crystal** or **lead-glazed pottery or porcelain** may contain lead.
- Folk remedies, such as "**greta**" and "**azarcon**," used to treat an upset stomach.

⁴ In 1978, the federal government banned toys, other children's products, and furniture with lead-containing paint (16 CFR 1303). In 2008, the federal government banned lead in most children's products. The federal government currently bans lead in excess of 100 ppm by weight in most children's products (76 FR 44463).

For More Information

The National Lead Information Center

Learn how to protect children from lead poisoning and get other information about lead hazards on the Web at epa.gov/lead and hud.gov/lead, or call **1-800-424-LEAD (5323)**.

EPA's Safe Drinking Water Hotline

For information about lead in drinking water, call **1-800-426-4791**, or visit epa.gov/lead for information about lead in drinking water.

Consumer Product Safety Commission (CPSC) Hotline

For information on lead in toys and other consumer products, or to report an unsafe consumer product or a product-related injury, call **1-800-638-2772**, or visit CPSC's website at cpsc.gov or saferproducts.gov.

State and Local Health and Environmental Agencies

Some states, tribes, and cities have their own rules related to lead-based paint. Check with your local agency to see which laws apply to you. Most agencies can also provide information on finding a lead abatement firm in your area, and on possible sources of financial aid for reducing lead hazards. Receive up-to-date address and phone information for your state or local contacts on the Web at epa.gov/lead, or contact the National Lead Information Center at **1-800-424-LEAD**.

Hearing- or speech-challenged individuals may access any of the phone numbers in this brochure through TTY by calling the toll-free Federal Relay Service at **1-800-877-8339**.

U. S. Environmental Protection Agency (EPA) Regional Offices

The mission of EPA is to protect human health and the environment. Your Regional EPA Office can provide further information regarding regulations and lead protection programs.

Region 1 (Connecticut, Massachusetts, Maine, New Hampshire, Rhode Island, Vermont)

Regional Lead Contact
U.S. EPA Region 1
5 Post Office Square, Suite 100, OES 05-4
Boston, MA 02109-3912
(888) 372-7341

Region 2 (New Jersey, New York, Puerto Rico, Virgin Islands)

Regional Lead Contact
U.S. EPA Region 2
2890 Woodbridge Avenue
Building 205, Mail Stop 225
Edison, NJ 08837-3679
(732) 321-6671

Region 3 (Delaware, Maryland, Pennsylvania, Virginia, DC, West Virginia)

Regional Lead Contact
U.S. EPA Region 3
1650 Arch Street
Philadelphia, PA 19103
(215) 814-2088

Region 4 (Alabama, Florida, Georgia, Kentucky, Mississippi, North Carolina, South Carolina, Tennessee)

Regional Lead Contact
U.S. EPA Region 4
AFC Tower, 12th Floor, Air, Pesticides & Toxics
61 Forsyth Street, SW
Atlanta, GA 30303
(404) 562-8998

Region 5 (Illinois, Indiana, Michigan, Minnesota, Ohio, Wisconsin)

Regional Lead Contact
U.S. EPA Region 5 (DT-8J)
77 West Jackson Boulevard
Chicago, IL 60604-3666
(312) 886-7836

Region 6 (Arkansas, Louisiana, New Mexico, Oklahoma, Texas, and 66 Tribes)

Regional Lead Contact
U.S. EPA Region 6
1445 Ross Avenue, 12th Floor
Dallas, TX 75202-2733
(214) 665-2704

Region 7 (Iowa, Kansas, Missouri, Nebraska)

Regional Lead Contact
U.S. EPA Region 7
11201 Renner Blvd.
WWPD/TOPE
Lenexa, KS 66219
(800) 223-0425

Region 8 (Colorado, Montana, North Dakota, South Dakota, Utah, Wyoming)

Regional Lead Contact
U.S. EPA Region 8
1595 Wynkoop St.
Denver, CO 80202
(303) 312-6966

Region 9 (Arizona, California, Hawaii, Nevada)

Regional Lead Contact
U.S. EPA Region 9 (CMD-4-2)
75 Hawthorne Street
San Francisco, CA 94105
(415) 947-4280

Region 10 (Alaska, Idaho, Oregon, Washington)

Regional Lead Contact
U.S. EPA Region 10
Solid Waste & Toxics Unit (WCM-128)
1200 Sixth Avenue, Suite 900
Seattle, WA 98101
(206) 553-1200

Consumer Product Safety Commission (CPSC)

The CPSC protects the public against unreasonable risk of injury from consumer products through education, safety standards activities, and enforcement. Contact CPSC for further information regarding consumer product safety and regulations.

CPSC

4330 East West Highway
Bethesda, MD 20814-4421
1-800-638-2772
cpsc.gov or saferproducts.gov

U. S. Department of Housing and Urban Development (HUD)

HUD's mission is to create strong, sustainable, inclusive communities and quality affordable homes for all. Contact HUD's Office of Healthy Homes and Lead Hazard Control for further information regarding the Lead Safe Housing Rule, which protects families in pre-1978 assisted housing, and for the lead hazard control and research grant programs.

HUD

451 Seventh Street, SW, Room 8236
Washington, DC 20410-3000
(202) 402-7698
hud.gov/offices/lead/

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U. S. EPA Washington DC 20460
U. S. CPSC Bethesda MD 20814
U. S. HUD Washington DC 20410

EPA-747-K-12-001
September 2013

IMPORTANT!

Lead From Paint, Dust, and Soil in and Around Your Home Can Be Dangerous if Not Managed Properly

- Children under 6 years old are most at risk for lead poisoning in your home.
- Lead exposure can harm young children and babies even before they are born.
- Homes, schools, and child care facilities built before 1978 are likely to contain lead-based paint.
- Even children who seem healthy may have dangerous levels of lead in their bodies.
- Disturbing surfaces with lead-based paint or removing lead-based paint improperly can increase the danger to your family.
- People can get lead into their bodies by breathing or swallowing lead dust, or by eating soil or paint chips containing lead.
- People have many options for reducing lead hazards. Generally, lead-based paint that is in good condition is not a hazard (see page 10).

Document Information

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Kelly Hoover	23		Completed	IP Address: 68.2.151.71 Timestamp: 06/15/2022 04:01:12 PM PST User Agent: Chrome on Windows
Kelly Hoover	26		Completed	IP Address: 68.2.151.71 Timestamp: 06/15/2022 04:01:15 PM PST User Agent: Chrome on Windows
Kelly Hoover	28		Completed	IP Address: 68.2.151.71 Timestamp: 06/15/2022 04:01:17 PM PST User Agent: Chrome on Windows
Kelly Hoover	30		Completed	IP Address: 68.2.151.71 Timestamp: 06/15/2022 04:01:19 PM PST User Agent: Chrome on Windows
Kelly Hoover	32		Completed	IP Address: 68.2.151.71 Timestamp: 06/15/2022 04:01:22 PM PST User Agent: Chrome on Windows
Kelly Hoover	34		Completed	IP Address: 68.2.151.71 Timestamp: 06/15/2022 04:01:24 PM PST User Agent: Chrome on Windows
Kelly Hoover	36		Completed	IP Address: 68.2.151.71 Timestamp: 06/15/2022 04:01:27 PM PST User Agent: Chrome on Windows
Kelly Hoover	38		Completed	IP Address: 68.2.151.71 Timestamp: 06/15/2022 04:01:29 PM PST User Agent: Chrome on Windows
Kelly Hoover	40		Completed	IP Address: 68.2.151.71 Timestamp: 06/15/2022 04:01:31 PM PST User Agent: Chrome on Windows
Kelly Hoover	46		Completed	IP Address: 68.2.151.71 Timestamp: 06/15/2022 04:01:33 PM PST User Agent: Chrome on Windows
Kelly Hoover	50		Completed	IP Address: 68.2.151.71 Timestamp: 06/15/2022 04:01:35 PM PST User Agent: Chrome on Windows
Kelly Hoover	55		Completed	IP Address: 68.2.151.71 Timestamp: 06/15/2022 04:01:36 PM PST User Agent: Chrome on Windows
Kelly Hoover	58		Completed	IP Address: 68.2.151.71 Timestamp: 06/15/2022 04:01:38 PM PST User Agent: Chrome on Windows
Kelly Hoover	60		Completed	IP Address: 68.2.151.71 Timestamp: 06/15/2022 04:01:40 PM PST User Agent: Chrome on Windows

Kelly Hoover

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Kelly Hoover

Completed

IP Address: 68.2.151.71
Timestamp: 06/15/2022 04:01:42 PM PST
User Agent: Chrome on Windows